



CIVILIAN COMPLAINT REVIEW BOARD

ERIC L. ADAMS, Mayor

ARVA RICE, Interim Chair

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Annual Report

2021

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MISSION

The New York City Civilian Complaint Review Board (CCRB, the Agency, or the Board) is an independent agency that is empowered to receive, investigate, prosecute, mediate, hear, make findings, and recommend action on civilian complaints filed against members of the New York City Police Department (NYPD or the Department) that allege the use of excessive or unnecessary Force, Abuse of Authority, Discourtesy, or the use of Offensive Language (FADO). The CCRB is also authorized to investigate, hear, make findings, and recommend action on the truthfulness of an official statement made by a subject officer during the course of a CCRB investigation. The Agency's staff, composed entirely of civilian employees, conduct investigations, mediations, and prosecutions in an impartial manner.

IN FULFILLMENT OF ITS MISSION, THE BOARD PLEDGES TO:

- encourage members of the community to file complaints when they believe they have been victims of police misconduct;
- respect the rights of civilians and officers;
- encourage all parties involved in a complaint to come forward and present evidence;
- expeditiously investigate each allegation thoroughly and impartially;
- make fair and objective determinations on the merits of each case;
- offer civilians and officers the opportunity to mediate their complaints, when appropriate, in order to promote understanding between officers and the communities they serve;
- recommend disciplinary actions that are measured and appropriate, if and when the investigative findings substantiate that misconduct occurred;
- engage in outreach in order to educate the public about the Agency and respond to community concerns;
- report relevant issues and policy matters to the Police Commissioner and the public; and
- advocate for policy changes related to police oversight, transparency, and accountability that will strengthen public trust and improve police-community relations.



Dear Fellow New Yorkers,

I am Arva Rice, the new Interim Chair of the CCRB. I am excited to lead the CCRB into its next chapter, but first, I want to reflect on the Agency's excellent work throughout 2021. It was a challenging year as we continued to grapple with the pandemic, but the Agency accomplished a great deal under the leadership of former CCRB Chair Fred Davie.

In 2021, the Agency signed a memorandum of understanding adopting the NYPD disciplinary matrix that standardizes the CCRB's penalty recommendations; made public, for the first time, a database of officer histories, enabling entities such as Pro Publica and the NYCLU to develop their own analysis of police misconduct; won court victories securing the CCRB's right to investigate sexual misconduct and false statement allegations; and was granted the authority to self-initiate

complaints, a longstanding Agency goal that shifts the burden of reporting away from the victims of police misconduct.

The CCRB also created the new Racial Profiling and Biased Policing Investigations Unit, spearheaded by Darius Charney, one of the country's leading civil rights attorneys. The unit is charged with investigating new allegations of biased policing, and old ones going back to 2016. It is a first step towards ensuring that communities of color are protected against bias-based policing, and it makes it more important than ever that the CCRB be granted an exemption from sealing statutes. These statutes block access to sealed documents and arrest records, vital evidence in these investigations that can help prove bias and police misconduct.

Meanwhile, the CCRB's Youth Advisory Council continues to lead national conversations about their relationship to policing in New York City. Our Outreach Division continues to develop new methods of integrating into communities and educating New Yorkers on their rights. And the CCRB's Civilian Assistance Unit, which took on its first client in June 2021, continues to serve civilians as they navigate the complaint process.

The CCRB is a uniquely important agency, that is key to fulfilling this great city's mission to protect New Yorkers. I look forward to working with the new administration and the new police commissioner to fulfill our duty of holding NYPD misconduct accountable, and I am proud to serve as interim chair.

Sincerely,

A handwritten signature in black ink, appearing to read 'Arva Rice'.

Arva Rice

EXECUTIVE SUMMARY

KEY FINDINGS: CCRB ACTIVITY

In 2021, the CCRB received 3,393 complaints within its jurisdiction. The CCRB fully investigated 612 complaints — substantiated 209 complaints (34%), was unable to determine whether misconduct occurred in 175 complaints (29%), found that 82 (13%) complaints were within NYPD guidelines, and concluded that 53 (9%) complaints were unfounded.

The Agency's Administrative Prosecution Unit (APU) won disciplinary action against 15 officers who were found guilty after trial and five officers whose cases were resolved by plea agreement.

The NYPD issued disciplinary decisions for 350 officers in 2021. The NYPD concurred with the CCRB's disciplinary recommendation in 209 (68%) non-APU complaints, and in ten (27%) APU cases.

AGENCY HIGHLIGHTS IN 2021

Implementation of the Disciplinary Matrix

On February 4, 2021, the CCRB and the NYPD signed an agreement¹ to implement a new Disciplinary Matrix that lays out penalties for a wide range of police misconduct. The new matrix is a step toward greater transparency regarding the discipline officers receive when they are found guilty of engaging in misconduct. The matrix groups penalties into three categories: mitigated, presumptive, and aggravated. These categories escalate the level of penalty across multiple types of police misconduct. The goal of breaking down police misconduct into a defined range of categories is to enable both the CCRB and the NYPD to better prescribe penalties for misconduct and to increase the consistency of penalties across all categories of substantiated police misconduct.

Racial Profiling and Bias Based Policing Unit

On April 25, 2021, the New York City Council passed Intro 2212-A², Resolution on Police Reform, that expanded the CCRB's jurisdiction to investigate allegations that members of the NYPD engaged in racial profiling and bias-based policing on or after January 1, 2016. The CCRB has assembled a Racial Profiling and Bias-Based Policing Unit led by a newly appointed director who is an expert in the field.

Civilian Assistance Unit

This year the Agency launched a new Civilian Assistance Unit. The purpose of this unit is to provide services to civilians who require social and psychological support while navigating the Agency's investigative process. The unit took on its first civilian client in June 2021 and has since received over 100 individual referrals and provided over 600 referrals for services.

Outreach

In October 2020, the CCRB and the New York City Young Men's Initiative (YMI) announced a partnership³ that provided the CCRB with \$50,000 in public education funds to be dedicated to targeted radio and social media advertising. The first advertisements rolled out in July 2021. The CCRB also partnered with the New York City Department of Youth and Community Development (DYCD) internship programs to train youth educators to teach their peers about when and how to contact the CCRB. Finally, the CCRB launched CCRB Cares, a program where outreach coordinators volunteer at food pantries, park clean-ups, and similar events to give back to the community while sharing information about the Agency with local residents.

¹ <https://www1.nyc.gov/assets/home/downloads/pdf/office-of-the-mayor/2021/Disciplinary-Matrix-MOU.pdf>

² <https://legistar.council.nyc.gov/LegislationDetail.aspx?ID=4770945&GUID=B5D55B19-D0FD-440C-999F-1708BF09F374>

³ https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/news/press-releases/2020/PR_YMI_CCRB_10142020.pdf

Summer 2020 Protest Investigations

By the end of 2021, the Agency had completed 152 full investigations into allegations of misconduct stemming from the Black Lives Matter protests during the summer of 2020. As a result of these investigations, the Board substantiated allegations of misconduct against 80 officers. Open investigations will continue into 2022, and the Agency will release a report analyzing police behavior during the protests including recommendations on how to improve police behavior in the future.

Self-Initiated Complaints

On December 9, 2021, the New York City Council passed Intro 2440⁴. Enacted on January 9, 2022, the bill empowers the CCRB to self-initiate complaints of police misconduct. This will allow the CCRB to address misconduct in instances when no complainant comes forward to report allegations of misconduct, or no complainant is available to participate in a misconduct investigation.

COVID 19 and the Operations of the CCRB

The global pandemic that began in 2020 and continued throughout all of 2021 significantly slowed the investigation of complaints. In calendar year 2019, the time from complaint receipt until the first MOS interview was 98 days; for 2021, the average was 237 days. Correspondingly, the days to close a full investigation went from 248 days to 499 days. On March 7, 2020, Governor Andrew Cuomo passed executive order No. 202⁵ that temporarily suspended the statute of limitations on all complaints open between March 2020 and November 2020, allowing the Agency to extend the timeline of its investigations into those complaints.

⁴ <https://legistar.council.nyc.gov/LegislationDetail.aspx?ID=5205437&GUID=9C384197-992F-4D38-9581-F3A56E206546&Options=ID|Text|&Search=2440>

⁵ https://www.governor.ny.gov/sites/default/files/atoms/files/EO_202.pdf

INTRODUCTION: THE BOARD AND AGENCY OPERATIONS

The Civilian Complaint Review Board is an agency of the City of New York. It became independent from the New York City Police Department and was established in its current all-civilian form in 1993.

Board members review and make findings on all misconduct complaints once they have been fully investigated. The Board consists of 15 members: the City Council appoints five Board members (one from each borough); the Police Commissioner designates three; the Public Advocate appoints one; and the Mayor appoints five. The Chair of the Board is jointly appointed by the Mayor and Speaker of the City Council.⁶

Under the New York City Charter §440, the Board must reflect the diversity of the City's residents, and all members must live in New York City. No member of the Board may have a law enforcement background, except those designated by the Police Commissioner, who must have had prior experience as law enforcement professionals. No Board member may be a public employee or serve in public office. Board members serve three-year terms, which can be renewed. They receive compensation on a per-session basis, although some Board members choose to serve pro bono.

From 1993 to 2013, all cases in which the Board substantiated an allegation of misconduct against an officer were referred to the Police Commissioner with a disciplinary recommendation. Pursuant to a Memorandum of Understanding between the CCRB and the NYPD⁷ (effective April 11, 2013), a team of CCRB attorneys from the Agency's Administrative Prosecution Unit (APU) handles most of the cases in which the Board recommends that Charges and Specifications (the most severe form of discipline) be brought against an officer. When the Board recommends discipline other than Charges and Specifications (Command Discipline B, Command Discipline A, or Formalized Training), the case is still referred directly to the Police Commissioner.

⁶ New York City Charter §440(b)1

https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/CCRB_CharterCh18A.pdf

⁷ https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

SECTION 1: COMPLAINT ACTIVITY

CCRB COMPLAINTS RECEIVED

For most New Yorkers contact with the CCRB begins with filing a complaint alleging police misconduct. This section covers the number of complaints received and their characteristics.

All complaints received are entered into the CCRB's Complaint Tracking System (CTS), but only those complaints that fall within the Agency's Force, Abuse of Authority, Discourtesy, or Offensive Language (FADO) jurisdiction are investigated by the CCRB.

A ballot measure revising the New York City Charter, which passed on November 5, 2019, authorized the CCRB to investigate the truthfulness of an official statement made by a subject officer during a CCRB investigation into a FADO allegation. This expanded jurisdiction—Force, Abuse of Authority, Discourtesy, Offensive Language, and Untruthful Statements (FADO&U)—went into effect on March 31, 2020.

Figure 01: Complaints Received Within CCRB Jurisdiction

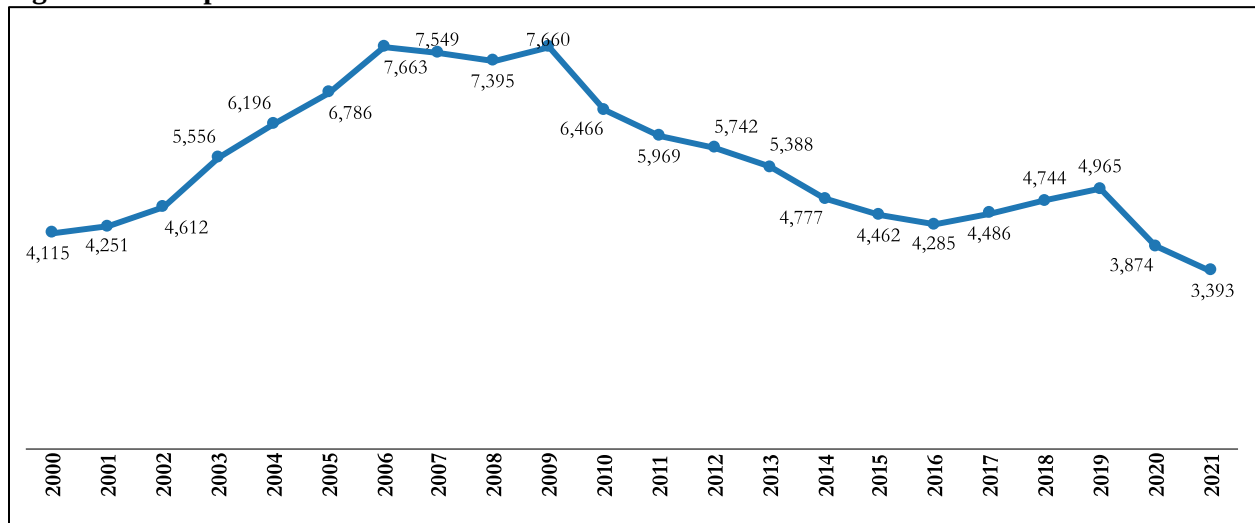
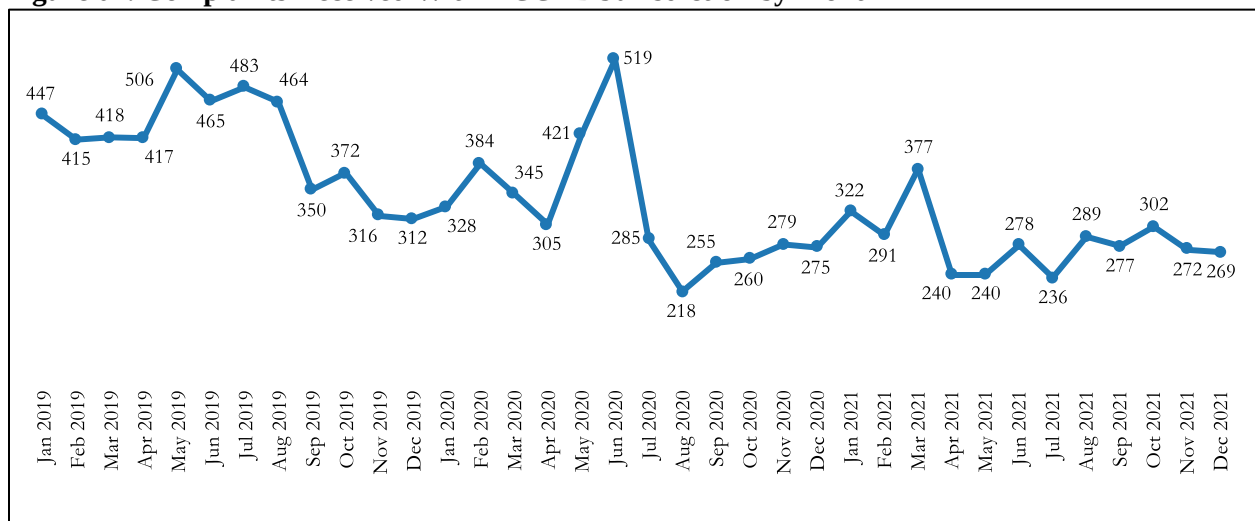


Figure 02: Complaints Received Within CCRB Jurisdiction by Month



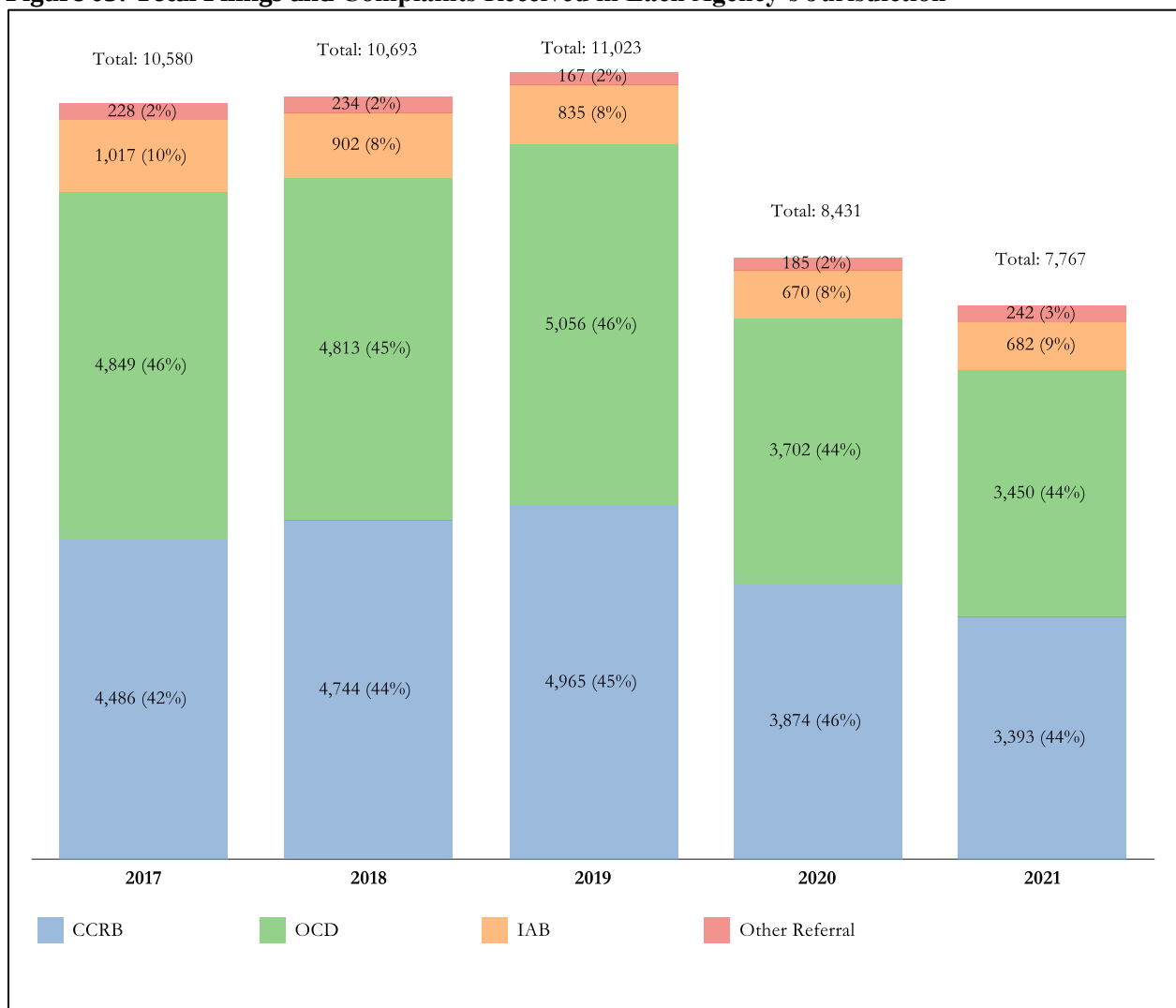
CCRB JURISDICTION AND TOTAL FILINGS

The CCRB receives a number of complaints that fall outside of the Agency’s FADO jurisdiction. These complaints are entered into the CTS and subsequently referred to the governmental entities with the jurisdiction to process them.

The NYPD has two divisions that are the primary recipients of CCRB referrals—the Office of the Chief of Department (OCD) that investigates alleged lower-level violations of the NYPD Patrol Guide and the Internal Affairs Bureau (IAB) that is tasked with investigating allegations such as corruption or criminal behavior. Individuals whose complaints are referred by the CCRB are provided with a tracking number so that they can follow up on their complaints with the appropriate agency.

Examples of complaints the CCRB might receive that do not fall within the Agency’s jurisdiction include: (1) complaints against Traffic Enforcement Agents and School Safety Agents; (2) complaints against an NYPD officer involving a summons or arrest dispute that does not include a FADO allegation; (3) complaints against an NYPD officer involving corruption; and (4) complaints against individuals who are not members of the NYPD, such as law enforcement from other municipalities, state police, or members of federal law enforcement, like the Federal Bureau of Investigation (FBI).

Figure 03: Total Filings and Complaints Received in Each Agency’s Jurisdiction



PLACE AND MODE OF FILING

The CCRB's Intake Unit receives and processes complaints filed directly with the CCRB. The Agency also receives referrals from IAB and other government offices.

The Agency is more likely to fully investigate complaints when they are filed directly with the CCRB (see Fig. 23). When complaints are not filed directly with the CCRB, the Agency may need to locate and make initial contact with an unidentified complainant/victim, or a complainant/victim who has not been informed that the complaint was referred to the CCRB for investigation.

Figure 04: Complaints Received by Complaint Place

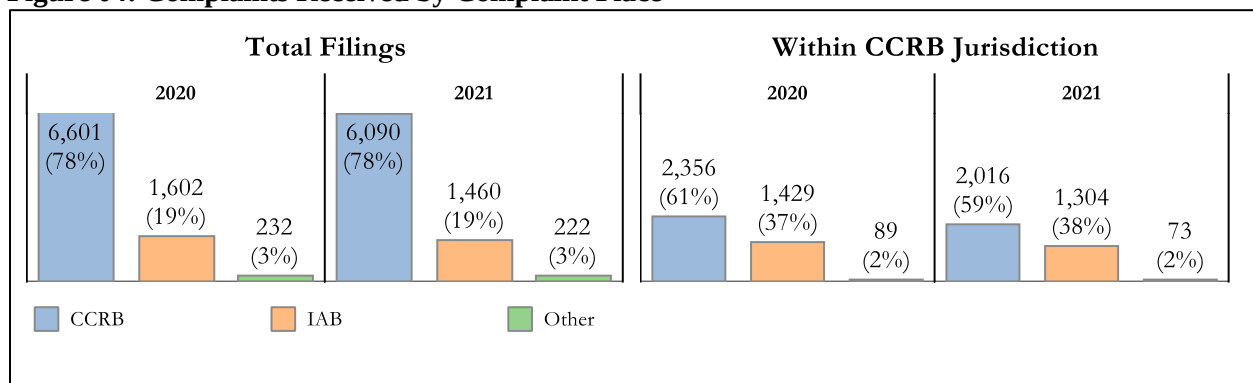


Figure 05: Complaints within CCRB Jurisdiction by Complaint Mode

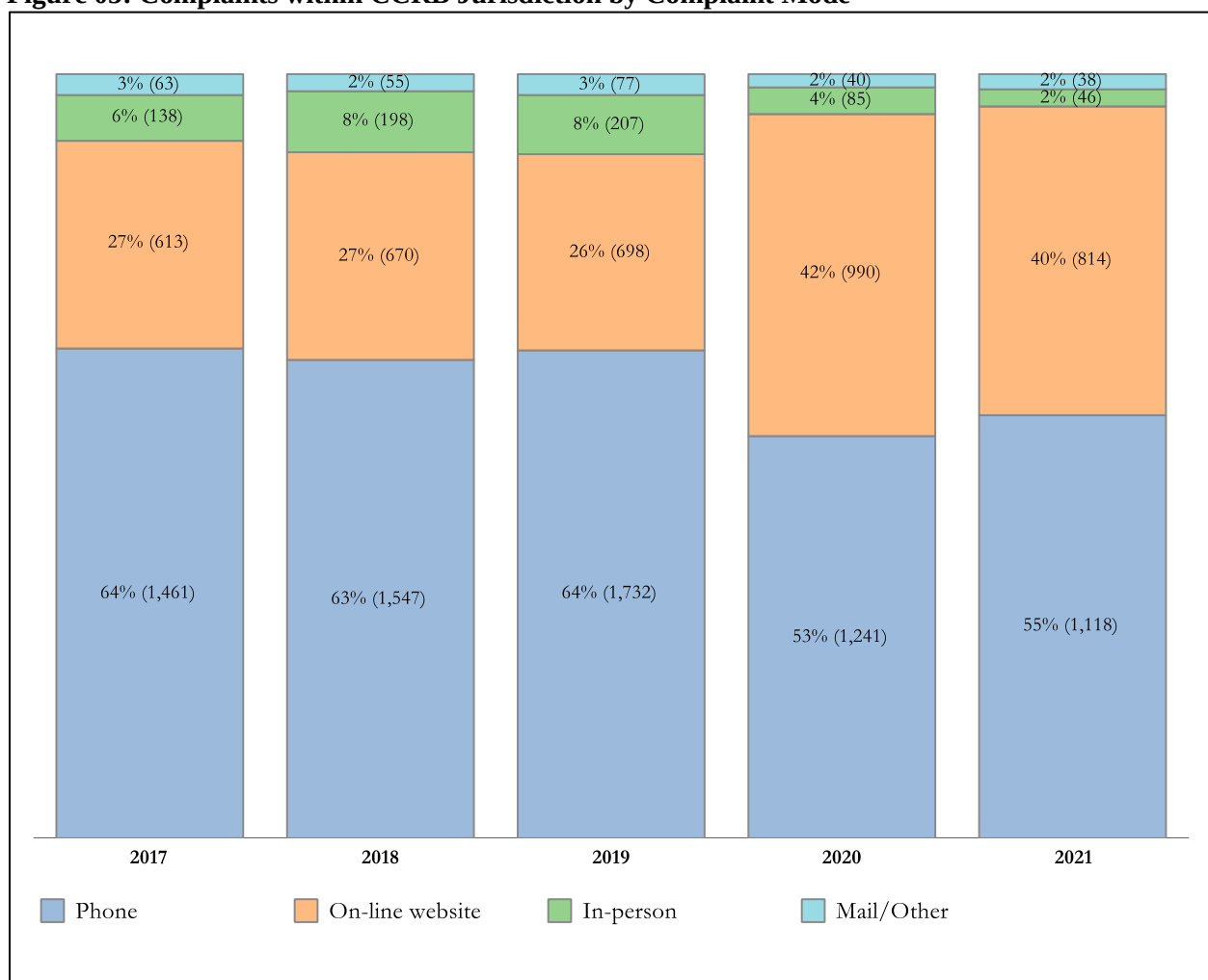
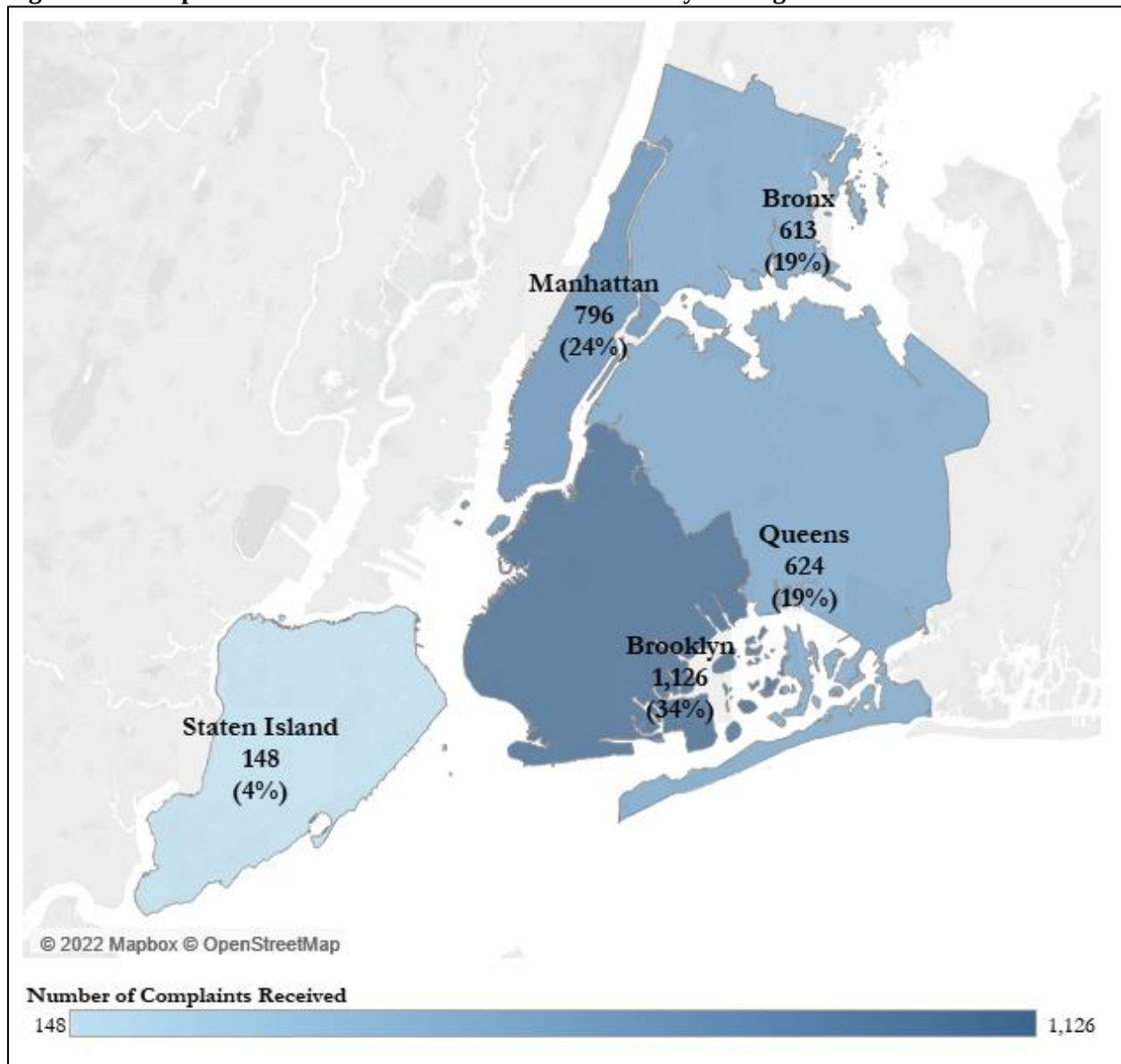


Figure 06: Complaints Received within CCRB Jurisdiction by Borough



LOCATION OF INCIDENTS RESULTING IN COMPLAINTS BY PRECINCT

Figure 07: Complaints Received within CCRB Jurisdiction by Precinct

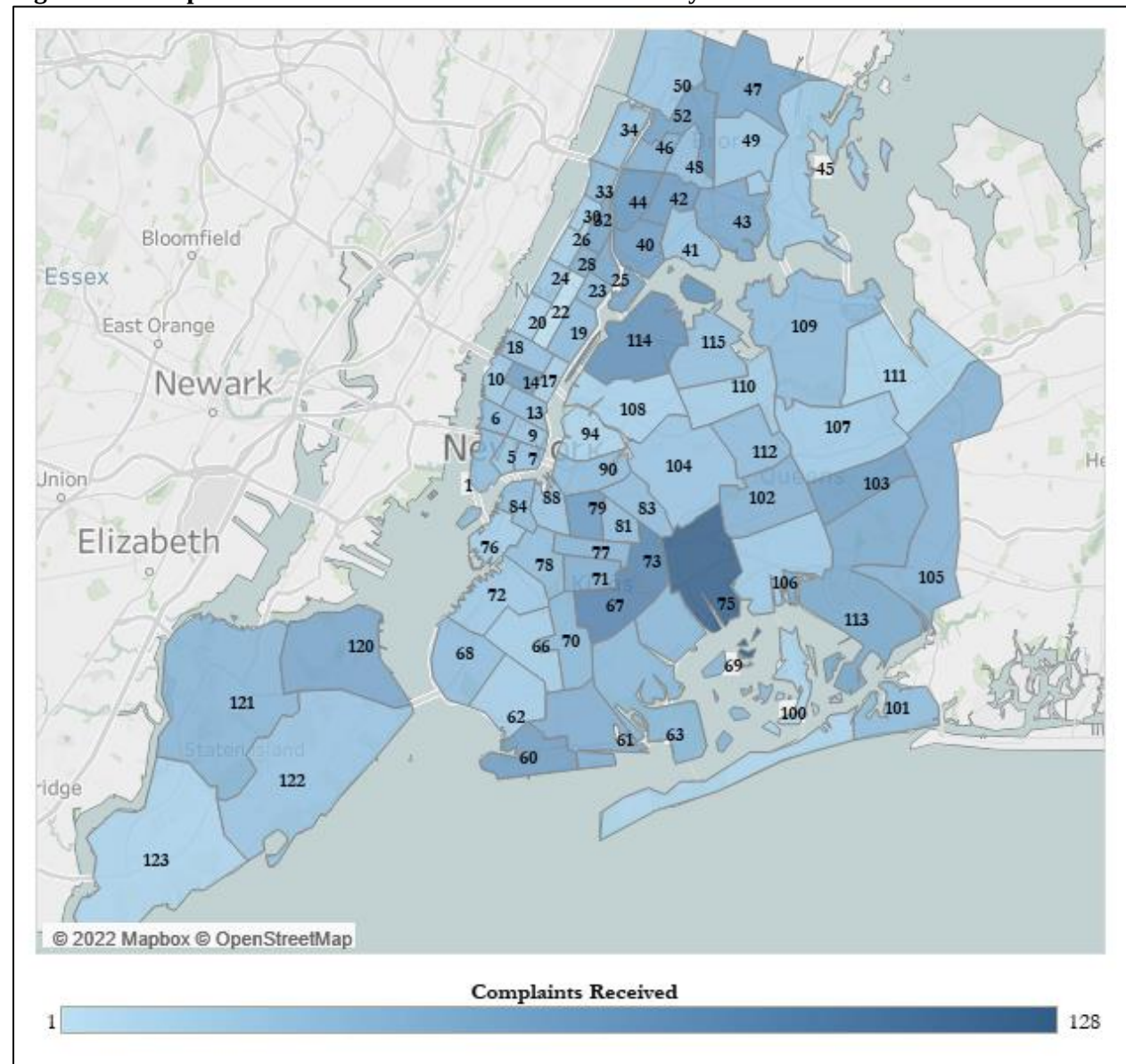


Figure 08: CCRB Complaints Received per Precinct of Occurrence⁸

Precinct	2020		2021	
	Complaint Count	Complaints per 10,000 residents	Complaint Count	Complaints per 10,000 residents
1	110	16	38	6
5	40	8	31	6
6	49	8	40	6
7	32	6	34	6
9	42	5	29	4
10	19	4	26	5
13	72	8	37	4
14	70	13	67	13
17	24	3	20	3
18	59	11	35	6
19	33	2	40	2
20	13	1	19	2
22			1	400
23	50	7	41	6
24	42	4	28	3
25	61	13	59	12
26	17	3	20	4
28	51	11	52	12
30	32	5	24	4
32	44	6	61	9
33	26	3	41	5
34	45	4	33	3
40	142	16	68	7
41	54	10	32	6
42	39	5	70	9
43	79	5	59	3
44	127	9	74	5
45	29	2	25	2
46	61	5	50	4
47	66	4	61	4
48	60	7	38	5
49	29	3	29	3
50	27	3	30	3
52	81	6	65	5
60	51	5	68	7
61	50	3	53	3
62	23	1	22	1
63	33	3	42	4
66	16	1	22	1

Precinct	2020		2021	
	Complaint Count	Complaints per 10,000 residents	Complaint Count	Complaints per 10,000 residents
67	99	6	92	6
68	32	3	37	3
69	34	4	43	5
70	58	4	42	3
71	52	5	53	5
72	28	2	27	2
73	122	14	90	10
75	161	9	128	7
76	18	4	22	5
77	72	7	46	5
78	50	8	37	6
79	89	10	70	8
81	48	8	40	6
83	41	4	40	4
84	70	15	40	8
88	40	8	31	6
90	56	5	40	3
94	17	3	17	3
100	15	3	15	3
101	40	6	38	6
102	37	3	49	3
103	97	9	69	7
104	27	2	30	2
105	50	3	49	3
106	26	2	26	2
107	26	2	25	2
108	14	1	19	2
109	35	1	40	2
110	30	2	23	1
111	15	1	18	2
112	25	2	40	4
113	62	5	56	5
114	42	2	80	4
115	36	2	35	2
120	54	5	59	5
121	38	3	44	4
122	33	2	30	2
123	11	1	15	2

⁸ Precinct population estimates are drawn from the 2010 Census, the most recent year for which detailed block-level population data is available. Census data is available at <https://data.census.gov/cedsci/>

CHARACTERISTICS OF ENCOUNTERS RESULTING IN A COMPLAINT

Figure 09: Top Reasons for Initial Contact

	2020		2021	
	Count	% Total	Count	% Total
PD suspected C/V of violation/crime - street	378	10%	299	9%
Report-dispute	258	7%	217	6%
PD suspected C/V of violation/crime - auto	245	6%	212	6%
EDP aided case	144	4%	171	5%
PD suspected C/V of violation/crime - bldg	175	5%	168	5%
Report of other crime	183	5%	165	5%
Report-domestic dispute	166	4%	136	4%
Moving violation	135	3%	132	4%
C/V requested investigation of crime	117	3%	111	3%
PD suspected C/V of violation/crime - subway	68	2%	111	3%
CV already in custody	75	2%	111	3%
Other violation of VTL	108	3%	97	3%
Execution of arrest/bench warrant	84	2%	90	3%
C/V intervened on behalf of/observed encounter w/3rd party	133	3%	77	2%
Other specified categories combined	1,000	26%	667	20%
Not Specified	605	16%	629	19%
Total	3,874	100%	3,393	100%

Figure 10: Outcome of Encounters Resulting in CCRB Complaints

	2020		2021	
	Count	% Total	Count	% Total
No arrest made or summons issued	2,453	63%	2,085	61%
Arrest - other violation/crime	827	21%	831	24%
Summons - other violation/crime	179	5%	140	4%
Moving violation summons issued	71	2%	88	3%
Arrest - resisting arrest	54	1%	59	2%
Other VTL violation summons issued	47	1%	40	1%
Arrest - assault (against a PO)	28	1%	28	1%
Parking summons issued	40	1%	30	1%
Arrest - OGA	22	1%	15	0%
Summons - disorderly conduct	35	1%	13	0%
Juvenile Report	4	0%	5	0%
Arrest - disorderly conduct	13	0%	3	0%
Arrest - harrasment (against a PO)	0	0%	1	0%
Summons - harrasment (against a PO)	1	0%	0	0%
Summons - OGA	0	0%	0	0%
N/A	100	3%	55	2%
Total	3,874	100%	3,393	100%

NUMBERS AND TYPES OF ALLEGATIONS CLOSED AND RECEIVED

An individual complaint may contain multiple allegations against one or more officers. While each complaint is associated with a distinct report date, the allegations associated with a complaint are not static and change over time. CCRB investigators may add or remove allegations associated with a complaint as an investigation proceeds.

Figure 11: Types of Allegations Closed

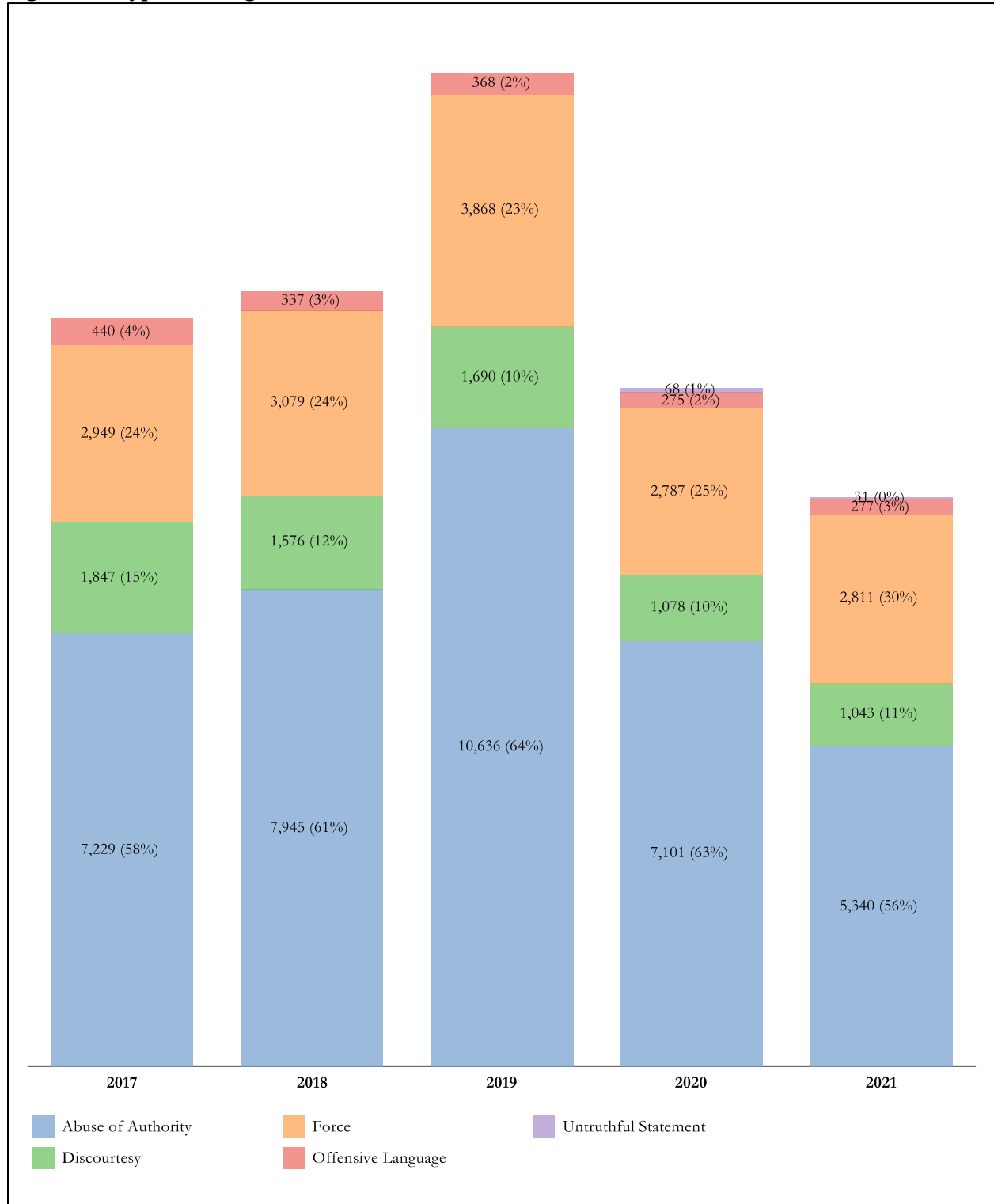


Figure 12: FADO&U Allegations in Complaints Received by Type

Force (F) Allegations	2020		2021	
	Count	% of Total	Count	% of Total
Physical force	3,058	70%	2,529	72%
Gun Pointed	243	6%	225	6%
Chokehold	112	3%	133	4%
Nonlethal restraining device	109	2%	124	4%
Hit against inanimate object	110	3%	113	3%
Restricted Breathing	120	3%	136	4%
Nightstick as club	311	7%	56	2%
Pepper spray	143	3%	42	1%
Handcuffs too tight	27	1%	40	1%
Other	52	1%	30	1%
Other blunt instrument as a club	27	1%	17	0%
Vehicle	39	1%	42	1%
Radio as club	2	0%	2	0%
Gun fired	19	0%	13	0%
Police shield	12	0%	1	0%
Gun as club	5	0%	6	0%
Flashlight as club	1	0%	1	0%
Less Than Lethal Force/Device	1	0%	0	0%

Discourtesy (D) Allegations	2020		2021	
	Count	% of Total	Count	% of Total
Action	245	14%	220	16%
Demeanor/ tone	14	1%	8	1%
Gesture	32	2%	33	2%
Other	17	1%	18	1%
Word	1,486	83%	1,057	79%

Offensive Language (O) Allegations	2020		2021	
	Count	% of Total	Count	% of Total
Race	99	25%	86	25%
Gender	125	32%	76	22%
Ethnicity	29	7%	16	5%
Other	86	22%	99	29%
Religion	8	2%	13	4%
Sexual orientation	36	9%	25	7%
Physical disability	8	2%	9	3%
Gender Identity	5	1%	19	6%

Untruthful Statement (U) Allegations	2020		2021	
	Count	% of Total	Count	% of Total
False official statement	44	30%	14	78%
Impeding an investigation	68	46%	0	0%
Inaccurate official statement	2	1%	1	6%
Misleading official statement	34	23%	3	17%

Abuse of Authority (A) Allegations	2020		2021	
	Count	% of Total	Count	% of Total
Body Cavity Searches	6	0%	10	0%
Disseminated immigration status	0	0%	0	0%
Electronic device information deletion	12	0%	9	0%
Enforcement Action	0	0%	1	0%
Entry of Premises	818	8%	989	11%
Failed to Obtain Language Interpretation	45	0%	55	1%
Failure to provide RTKA card	720	7%	561	6%
False Official Statements	0	0%	1	0%
Forcible Removal to Hospital	471	5%	515	6%
Frisk	512	5%	283	3%
Gun Drawn	85	1%	76	1%
Improper dissemination of medical info	7	0%	5	0%
Inaccurate Statements	0	0%	2	0%
Interference with recording	168	2%	128	1%
Obstructed Rank Designation	0	0%	1	0%
Obstructed Shield Number	33	0%	30	0%
Other	139	1%	105	1%
Photography/Videography	53	1%	43	0%
Premises entered and/or searched	0	0%	0	0%
Property damaged	321	3%	373	4%
Question	216	2%	195	2%
Questioned immigration status	5	0%	3	0%
Refusal to obtain medical treatment	193	2%	145	2%
Refusal to process civilian complaint	159	2%	189	2%
Refusal to provide name	651	7%	484	5%
Refusal to provide name/shield number	0	0%	0	0%
Refusal to provide shield number	707	7%	413	5%
Refusal to show arrest warrant	25	0%	40	0%
Refusal to show search warrant	43	0%	46	1%
Retaliatory arrest	4	0%	3	0%
Retaliatory summons	13	0%	7	0%
Search (of person)	547	5%	379	4%
Search of Premises	346	3%	413	5%
Search of recording device	39	0%	33	0%
Seizure of property	186	2%	270	3%
Sex Miscon (Humiliation: fail to cover)	0	0%	36	0%
Sex Miscon (Sexual Harassment, Gesture)	2	0%	7	0%
Sex Miscon (Sexual Harassment, Verbal)	4	0%	28	0%
Sex Miscon (Sexual/Romantic Proposition)	2	0%	14	0%
Sex Miscon (Sexually Motiv Photo/Video)	0	0%	1	0%
Sex Miscon (Sexually Motiv Strip-Search)	0	0%	1	0%
Sex Miscon (Sexually Motivated Frisk)	2	0%	3	0%
Sex Miscon (Sexually Motivated Search)	4	0%	3	0%
Sexual Miscon (Forcible Touching)	0	0%	19	0%
Sexual Miscon (Inappropriate Touching)	0	0%	31	0%
Sexual Miscon (Penetrative Sex. Contact)	0	0%	4	0%
Sexual Miscon (Rape)	0	0%	9	0%
Sexual Miscon (Sexual Assault)	0	0%	8	0%
Sexual Misconduct (Sexual Humiliation)	8	0%	15	0%
Stop	737	7%	488	6%
Strip-searched	55	1%	53	1%
Threat of arrest	893	9%	724	8%
Threat of force (verbal or physical)	431	4%	417	5%
Threat of summons	89	1%	94	1%
Threat re: immigration status	2	0%	2	0%
Threat re: removal to hospital	86	1%	78	1%
Threat to damage/seize property	106	1%	146	2%
Threat to notify ACS	38	0%	25	0%
Unlawful Arrest	10	0%	2	0%
Unlawful Summons	2	0%	0	0%
Untruthful Statement	0	0%	3	0%
Vehicle search	500	5%	397	4%
Vehicle stop	488	5%	454	5%

The following case abstracts are taken from complaints closed in 2021 and serve as examples of the types of misconduct allegations that fall under the CCRB's jurisdiction:⁹

1. Force

An individual was at home when Police Officer James Foy and Police Officer Harry Kerr knocked on her door very early in the morning. The individual was naked except for being wrapped in a blanket. The officers told her that they had come with the individual's ex-boyfriend to assist her ex-boyfriend in removing his belongings from the home. The individual told the officers that she was informed by the court system that her ex-boyfriend would need a court order to remove his items from the home. The officers told the individual to let them and her ex-boyfriend into the home. The individual said she would not let them in and moved to close her door. Police Officer James Foy crossed the threshold of the home and pushed the individual's arm, causing her to stumble backwards. The individual restated that she did not want the officers in her home while PO Foy continued to push her into the home and into a bathroom. PO Kerr entered the home as well.

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. The courts have established that warrantless entries into private residences are presumed unconstitutional; the court held that absent exigent circumstances, a physically present co-occupant's stated refusal to permit entry renders a warrantless entry unreasonable and invalid despite a second present occupant's expressed consent.

The officer's actions were captured on Body Worn Camera (BWC) footage. The officers were captured standing outside the individual's door where the door was open less than halfway. The footage showed the individual attempting to close the door and an officer stating "you're gonna make me force this door open." PO Foy is captured pushing the door open with his shoulder and forcing his way inside. The individual is captured screaming at PO Foy for him to leave and PO Foy is captured pushing the individual in her chest causing her to stumble backward. The officers are captured walking into the apartment and PO Foy continues to push the individual as she screams at them to get out. The investigation determined that the officers forced their way into the individual's apartment, and she did not give consent verbally, or physically (indicated by the degree to which her door was open) for the officers to enter. The investigation further determined that the force used by PO Foy to enter the apartment and then to push the individual several times while in her apartment also escalated the situation and was used to overcome the individual's repeated refusal to allow entry into her home. The Board substantiated the Use of Force allegations.

2. Abuse of Authority

An individual who had been released after an arrest went back to the precinct with her daughter to retrieve her belongings and her vehicle. While she was inside the precinct, an unknown officer drove the individual's vehicle and parked it on the precinct's driveway. The individual's daughter told her mother that Police Officer Keith Chatterton was issuing the vehicle a ticket. The individual left the precinct, went to PO Chatterton, and asked him why he was issuing a ticket. PO Chatterton said that she had parked her car in a no parking zone. The individual stated that it was an officer who parked her car there. PO Chatterton stated that it was too late and told the individual to move her vehicle before he gave her another ticket for disorderly conduct and obstructing governmental administration. The individual moved her vehicle.

⁹ Each of the cases described in this section were substantiated complaints, intended to illustrate the difference between types of allegations the Board investigated and found to be misconduct.

NY Penal Law §195.05 states that an individual is guilty of obstructing governmental administration if the individual intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function by means of intimidation, physical force or interference, or by means of any independently unlawful act, and NY Penal Law §240.20 states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof.

PO Chatterton stated that he saw the individual's car in the driveway of the precinct, and it prevented him and another officer from leaving the precinct. He stated that he saw a passenger in the vehicle – identified as the individual's daughter and asked her to move the car. She did not do so. PO Chatterton made no effort to ascertain who the owner of the vehicle was, and who had parked it in the precinct driveway. PO Chatterton also did not issue any instructions to the individual when she came out of the stationhouse. Police records show that the individual's vehicle was released to her at 8:52 am and PO Chatterton issued the parking ticket at 9:07 am. PO Chatterton admitted that when the individual exited the precinct and approached him, he told her that he would issue her a ticket for disorderly conduct or for obstructing governmental administration. Finally, PO Chatterton stated that the individual moved her car. The investigation determined that PO Chatterton's threat to issue the individual a summons was excessive and unjustified. The Board substantiated the Abuse of Authority allegation.

3. Discourtesy

An individual was working at a hospital when Police Officer John Carty and another officer brought a male civilian into the hospital's emergency room. PO Carty told the individual that he wanted the male civilian evaluated because he and his partner believed the male civilian to be intoxicated. The individual and a colleague evaluated the male civilian and determined that he was clinically sober and cleared him for release. PO Carty stated that if the male civilian was discharged, he would continue to bring him back to the hospital until the hospital staff agreed to detain him. The male civilian left the hospital. The individual told PO Carty that he was returning to work, and, as he left, PO Carty said, "fucking asshole." The individual told PO Carty that he was being unprofessional.

NYPD Patrol Guide 203-10 states that using discourteous or disrespectful remarks regarding another's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability constitutes prohibited conduct when encountering members of the public.

PO Carty admitted that he said "asshole" to the individual. He stated that he used "fuck" because he was angry and that he felt that the individual had talked down to him. He admitted that his use of profanity served no law enforcement purpose and that it was inappropriate. The investigation found that PO Carty's use of profanity was directed at the individual and it was discourteous and lacking in professionalism and respect as required by the patrol guide. The Board substantiated the Discourtesy allegation.

4. Offensive Language

An individual filed an online complaint wherein they referenced a twitter post made by Sergeant Edward Mullins in response to a post by Councilmember Ritchie Torres regarding a potential investigation of the NYPD. Sgt. Mullins tweeted that "He we go [sic] America this is what a first-class whore looks like RITCHIE TORRES Passes laws to defund police, supports criminals, & now because he's running for office he blames the police to protect what he voted for. Remember Little Ritchie? Meet LYING RITCHIE @RitchieTorres."

NYPD Patrol Guide procedure 200-02 states that the Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others, respect the dignity of each individual and render services with courtesy and civility and NYPD Patrol Guide procedure 203-10 states that officers are prohibited from using discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

The investigation determined "whore" was widely viewed as a homophobic slur, drawing on America's history of connecting homosexual men with sexual perversion and/or illicit activity and that Sgt. Mullins use of the term is of public concern because his public use of derogatory and offensive language damages the relationship between the NYPD and the community. The Board substantiated the Offensive Language allegation.

5. Untruthful Statement

An emotionally disturbed individual was rear-cuffed and sitting on the floor surrounded by four officers. The individual, while seated, swung his foot towards the subject officer ¹⁰. The subject officer responded by kicking the individual in his hip area. The incident was caught on BWC.

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

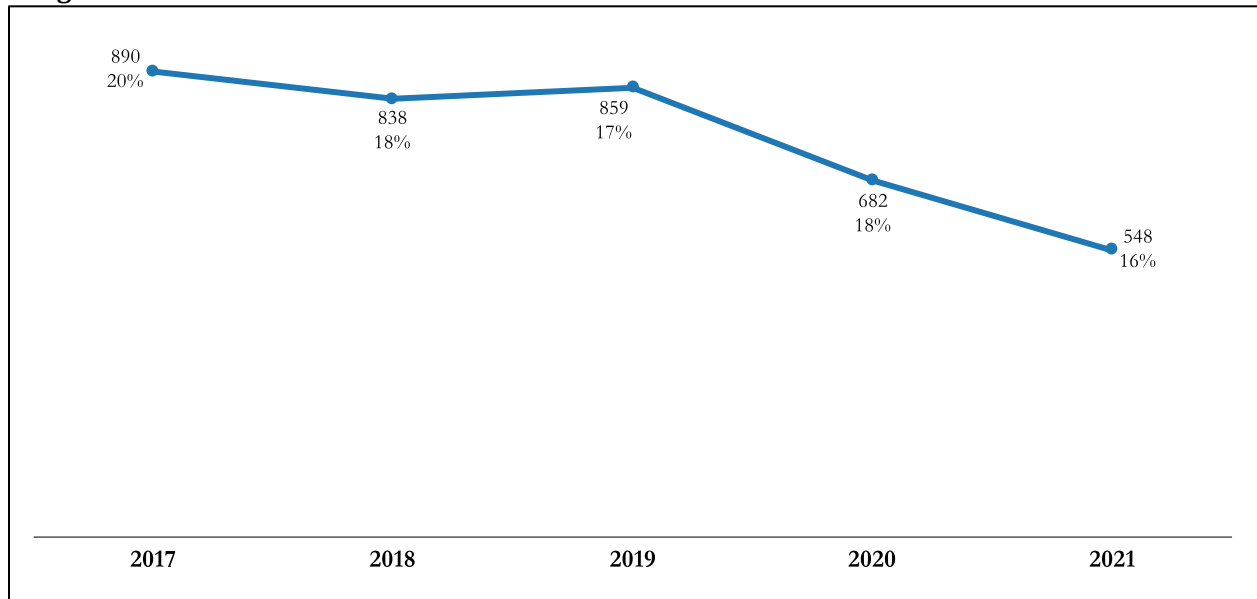
When the subject officer was interviewed, she stated that she kicked the individual to prevent him from kicking her again. The BWC, and interviews from other responding officers showed that the individual was already in custody and posed no immediate danger to the present officers, that the officers were aware that the individual had been identified as an emotionally disturbed person, and that all the officers except for the subject officer maintained a zone of safety around the individual as they waited for emergency medical services. The subject officer's use of force was retaliatory in nature, rather than tactical, and thus unreasonable under the circumstances. The subject officer's statement that she kicked the individual in the foot only changed when she was shown the BWC, but she maintained that she kicked him to push his foot down and to prevent him from kicking her again, a factually different statement than what she told IAB (that her kick was reactionary). The investigation determined that this alternative narrative was material to the investigation as it could have impacted the disposition of the allegation. The Board substantiated the Untruthful statement allegation.

¹⁰ CCRB has reopened this case

STOP, QUESTION, FRISK AND SEARCH OF PERSON ALLEGATIONS

Because of the longstanding public discussion surrounding “Stop & Frisk” policing, the CCRB keeps track of all complaints containing a stop, question, frisk, or search of a person allegation.

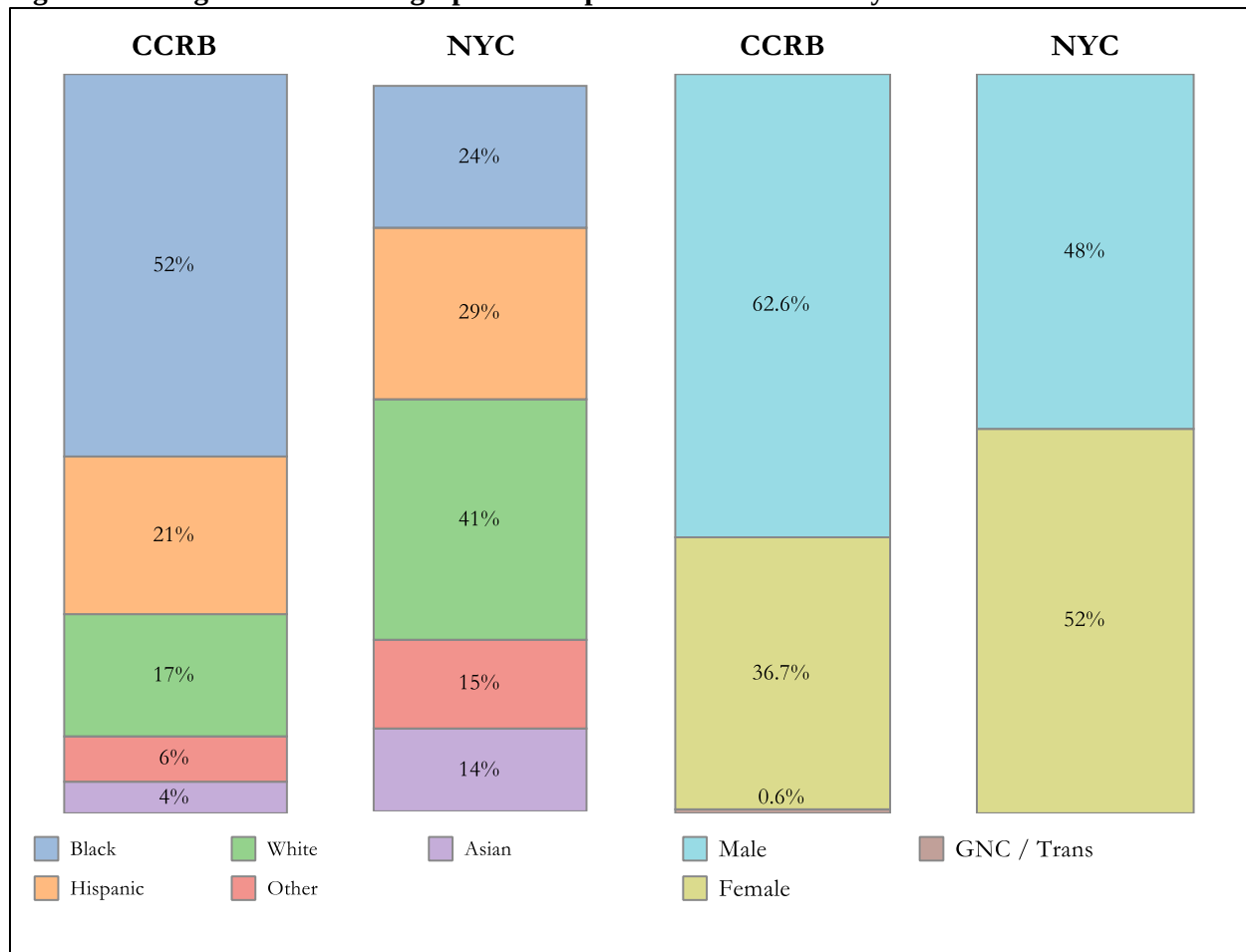
Figure 13: Complaints Received Containing a Stop, Question, Frisk, and Search of Person Allegation



CHARACTERISTICS OF ALLEGED VICTIMS

The CCRB compares the demographic profiles of the alleged victims to the demographics of the city, without controlling for any other factors such as the proportion of encounters with the police or the number of criminal suspects. The race and gender of alleged victims are disproportionate to the racial and gender makeup of New York City's population (Fig. 14).¹¹

Figure 14: Alleged Victim Demographics Compared to New York City^{12 13}



¹¹ City demographic information is drawn from the 2019 United States Census estimate. All race demographics are inclusive of Hispanic origin. For example, “Black” includes both “Black Hispanic” and “Black Non-Hispanic.” Census data is available at <https://www.census.gov/quickfacts/newyorkcitynewyork>

¹² The percentages for race of New York City residents do not add up to 100% because the Census allows respondents to self-report Hispanic ethnicity separate from race. Someone may, for instance, indicate that they are both Black and Hispanic. This means that some individuals are counted in these categories twice. Since current CCRB race/ethnicity categories are not precisely aligned with Census categories, comparisons should be made with caution.

¹³ “GNC” is an acronym that stands for Gender Nonconforming. “Trans” includes individuals who identify as Transmen and Transwomen in CCRB records.

CHARACTERISTICS OF SUBJECT OFFICERS

Figure 15: Subject Officer Demographics Compared to NYPD Officer Population

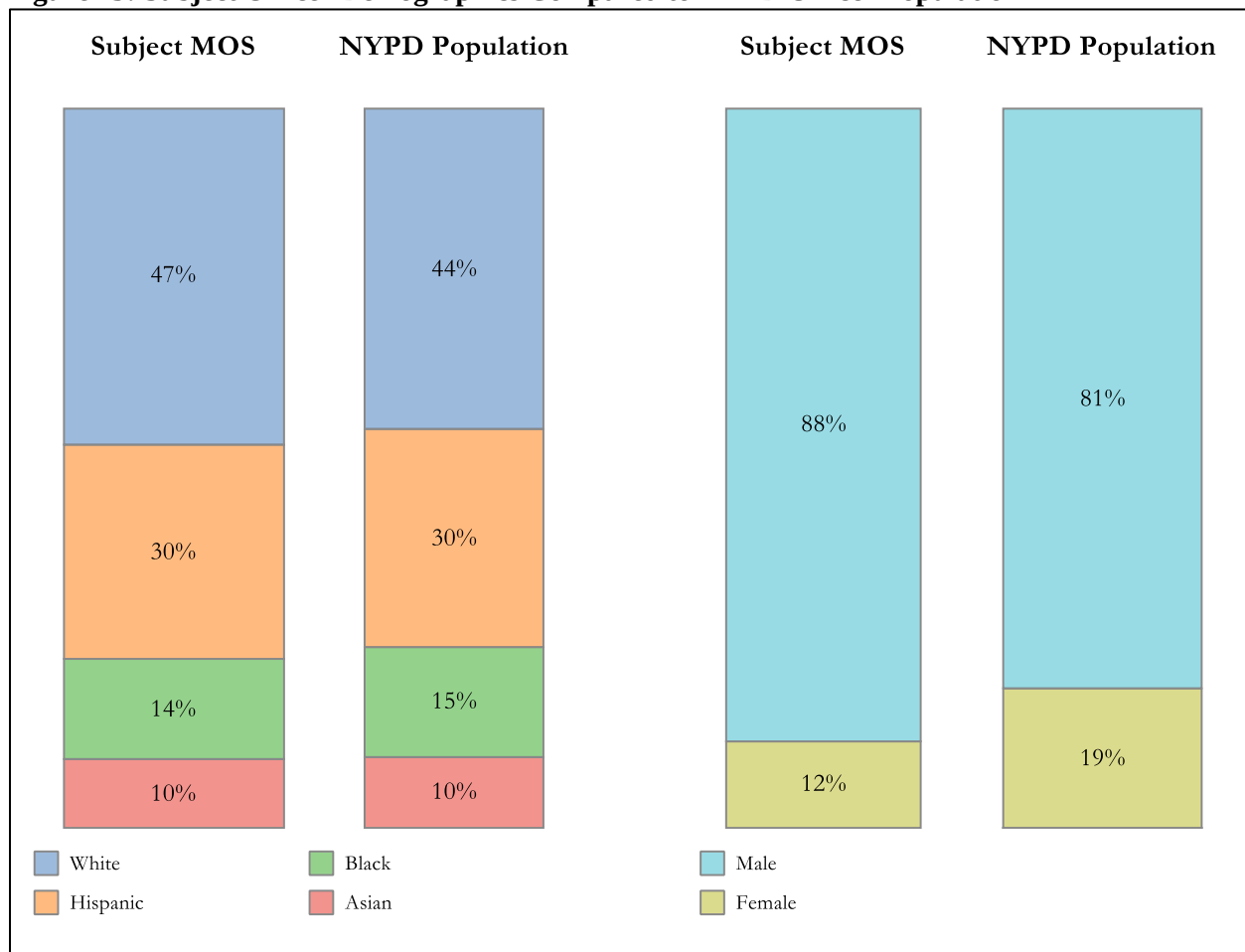


Figure 16: Rank and Tenure of Active MOS with Recently Closed Substantiated CCRB Complaints

Rank	2021	
	Count	Percent
Captain	8	2%
Chiefs and other ranks	2	1%
Deputy Inspector	2	1%
Detective	20	6%
Inspector	2	1%
Lieutenant	19	5%
Police Officer	231	66%
Sergeant	64	18%

Tenure	2021	
	Count	Percent
0-3 Years	49	14%
4-5 Years	91	26%
6-10 Years	82	24%
11-15 Years	75	22%
16-20 Years	34	10%
21+ Years	17	5%

TOTAL COMPLAINTS AGAINST ACTIVE MEMBERS OF SERVICE (MOS)

The charts below depict how complaints are distributed among active members of service.

Figure 17: Active MOS with CCRB Complaints

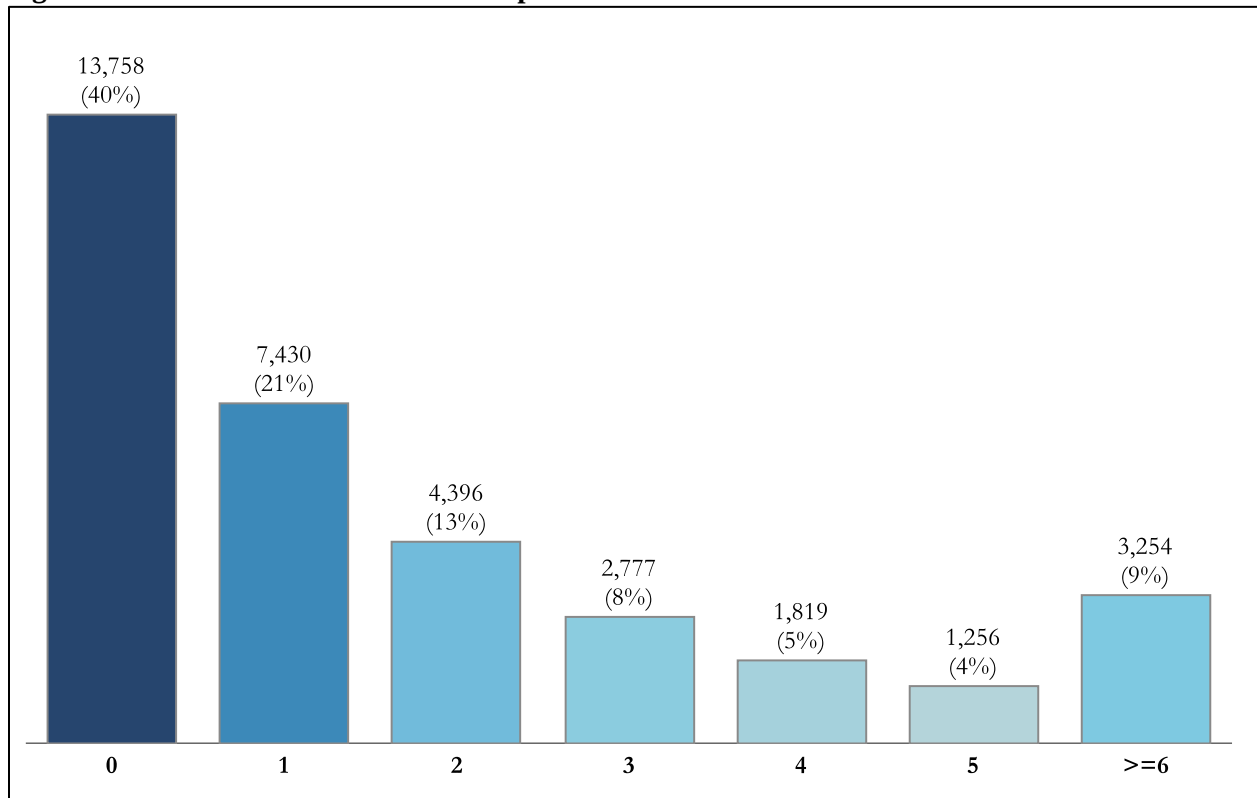
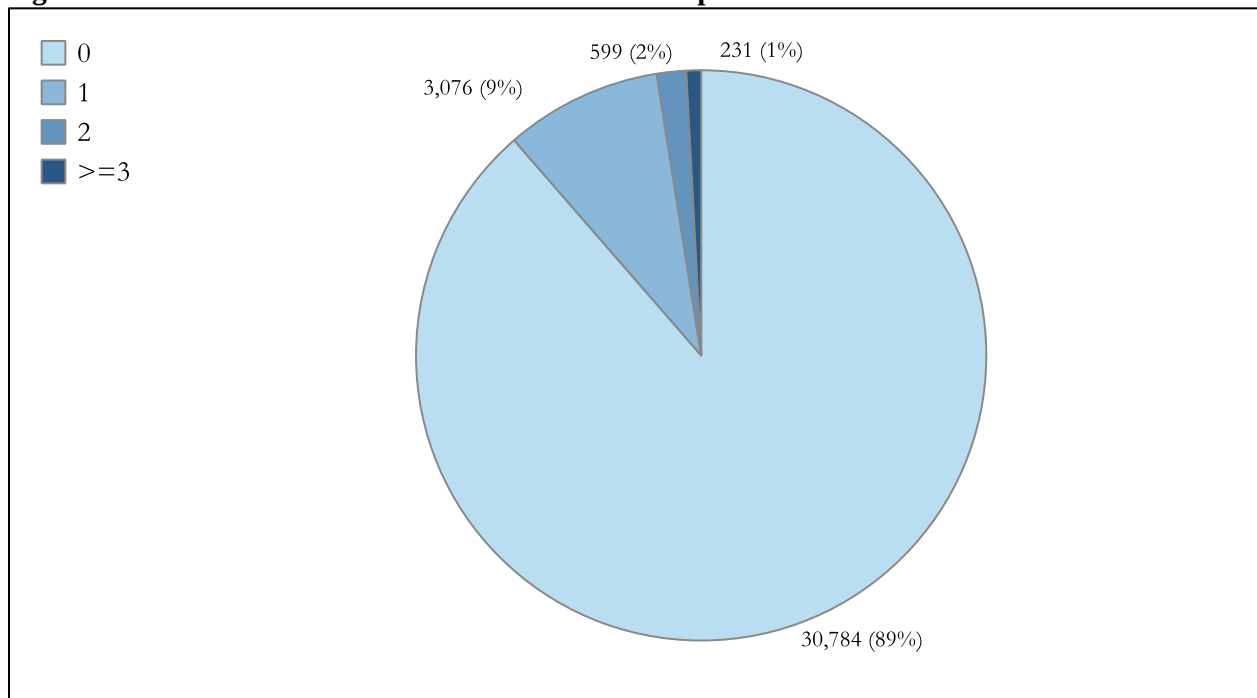


Figure 18: Active MOS with Substantiated CCRB Complaints



SECTION 2: INVESTIGATIONS

Investigation is the core function of the CCRB. Every complaint passes through the Investigations Division, even if it is ultimately resolved through mediation.

At the beginning of an investigation, an investigator interviews the complainant and any witnesses, collects evidence, and attempts to identify the police officer(s) involved in the encounter. In many instances, the officers' identities are unknown at the outset of the investigation. Investigators interview any officers identified in the course of their investigation.

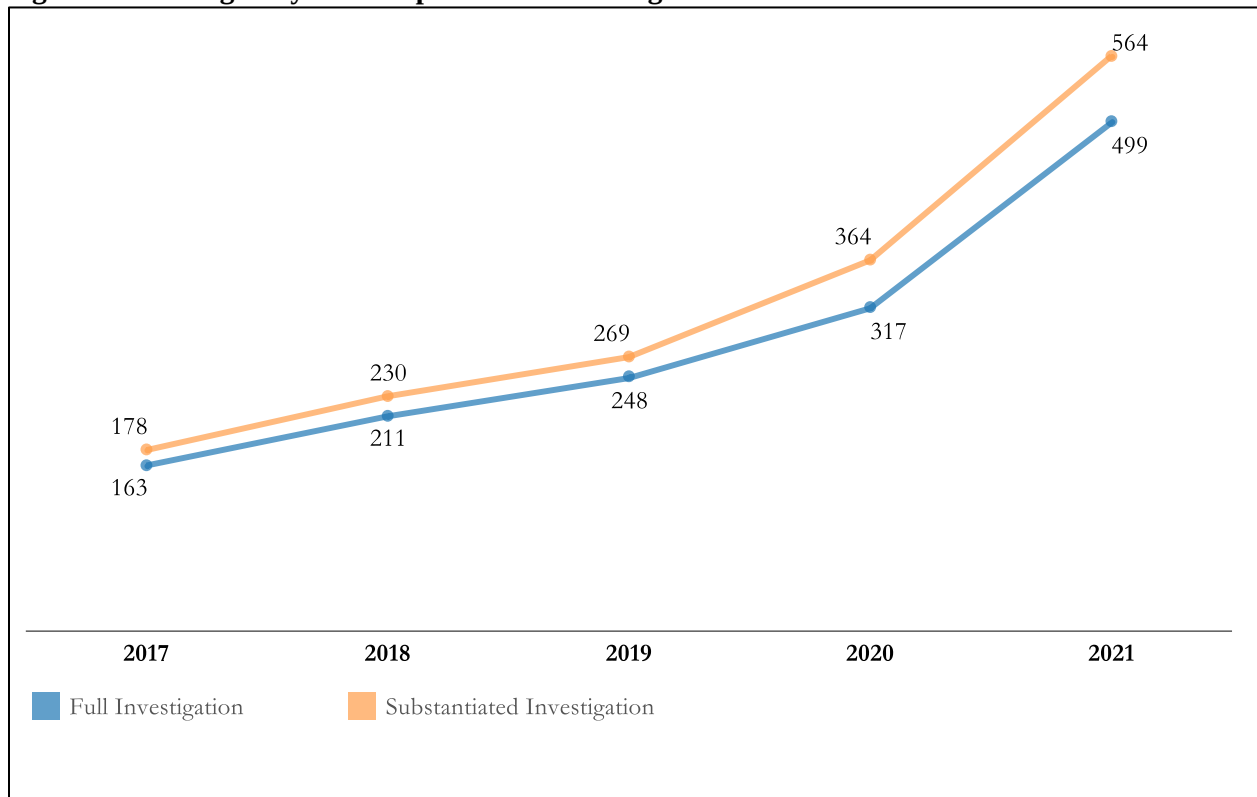
Once all the necessary interviews are conducted and the collected evidence is reviewed, the investigative team makes a disposition recommendation to the Board for each allegation in the case. In the majority of cases, a panel of three Board members, comprised of one mayoral designee, one City Council designee, and one Police Commissioner designee, reviews the case and votes on the investigator's recommendations. In certain limited circumstances, the full Board will consider a case.

In order to resolve investigations fairly and in accordance with local law, the CCRB generally needs the cooperation of at least one civilian complainant/alleged victim related to the case. The New York City Charter states that the CCRB's findings and recommendations cannot "be based solely upon an unsworn complaint or statement."¹⁴ When a complainant or alleged victim is available for an interview, the Agency deems the resulting investigation a "full investigation." If there is no complainant or alleged victim available for an interview and there is no additional evidence upon which the investigation can proceed, the investigation is closed as "Unable to Investigate." The Investigations Division makes every effort to fully investigate cases; its primary goal is to complete full and fair investigations.

This section covers the performance of the Investigations Division and the outcomes of complaints received by the CCRB.

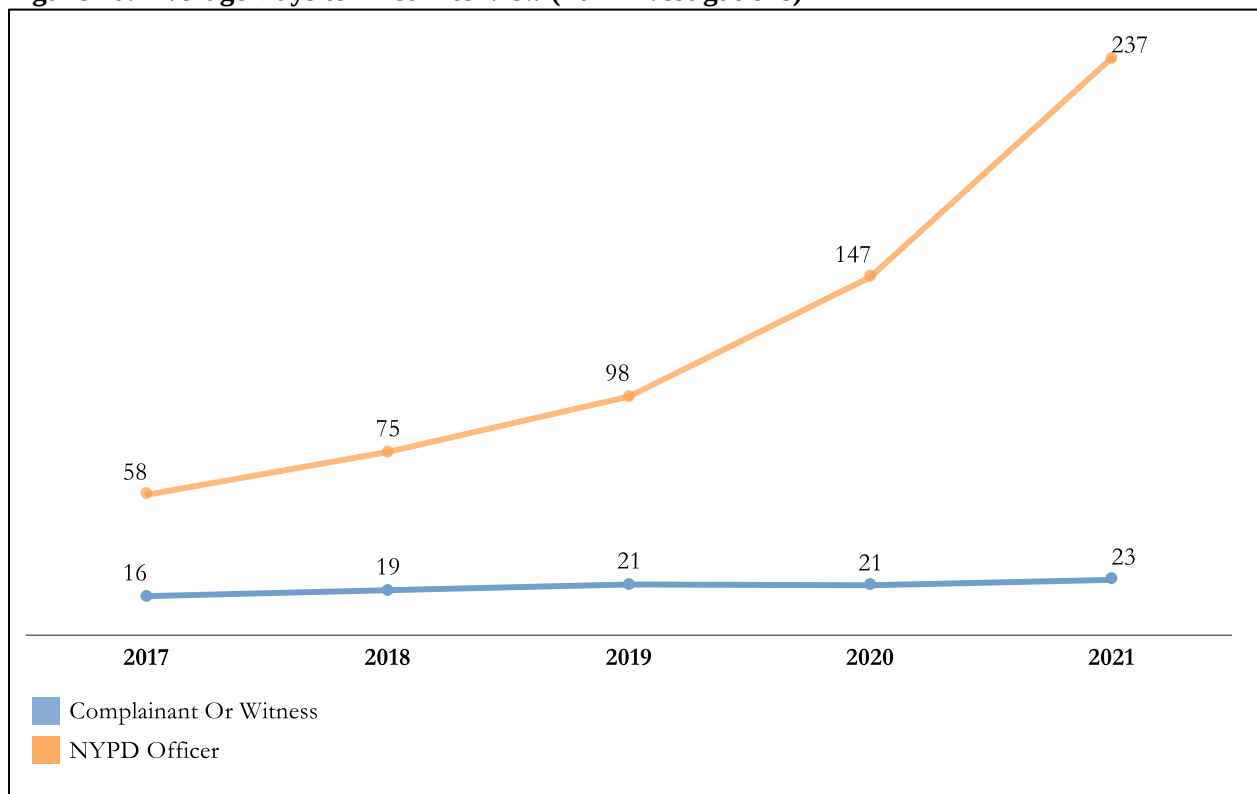
¹⁴New York City Charter §440(c)(1).

Figure 19: Average Days to Complete a Full Investigation



Average days excludes re-opened cases and cases that have been placed on hold by the District Attorney.

Figure 20: Average Days to First Interview (Full Investigations)



Average days excludes re-opened cases and cases that have been placed on hold by the District Attorney.

CASE RESOLUTION AND INVESTIGATIVE OUTCOMES

A complaint can be resolved in various ways. The complaint may be fully investigated, mediated, closed after mediation is attempted,¹⁵ or closed as “Unable to Investigate” (the complainant is unable or unwilling to cooperate with a full investigation or cannot be reached for an interview). There are also a small number of cases where the complainant asks to withdraw their case and a small number of cases that are closed as miscellaneous closures,¹⁶ which include administratively closed complaints and complaints in which the subject officer left the Department before an investigation or mediation was completed.

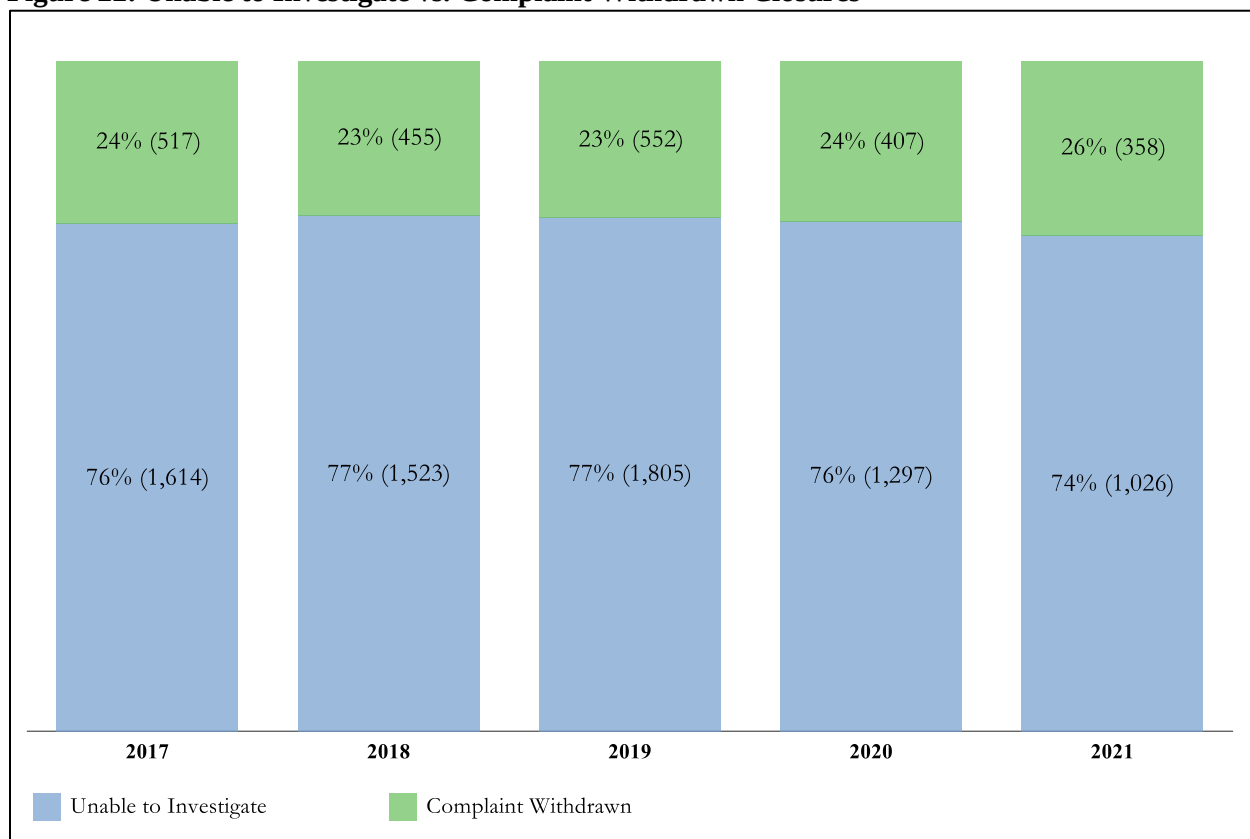
Figure 21: Case Resolutions

	2017		2018		2019		2020		2021	
	Count	% of Total	Count	% of Total	Count	% of Total	Count	% of Total	Count	% of Total
Unable to Investigate	1,646	41%	1,571	39%	1,863	39%	1,335	41%	1,059	39%
Full Investigation	1,348	33%	1,208	30%	1,539	32%	981	30%	612	23%
Complaint Withdrawn	517	13%	455	11%	552	12%	407	12%	358	13%
Closed - Pending Litigation	77	2%	291	7%	383	8%	333	10%	314	12%
Mediation Attempted	213	5%	231	6%	240	5%	109	3%	140	5%
Mediated	204	5%	232	6%	187	4%	30	1%	120	4%
Misc. Closure	44	1%	17	0%	31	1%	89	3%	80	3%

¹⁵ “Mediation attempted” is a designation for a case in which both the officer and the civilian agree to mediate, but the civilian either fails to appear twice for a scheduled mediation session without good cause, or fails to respond to attempts to schedule a mediation session, and does not request that the case be sent back for a full investigation.

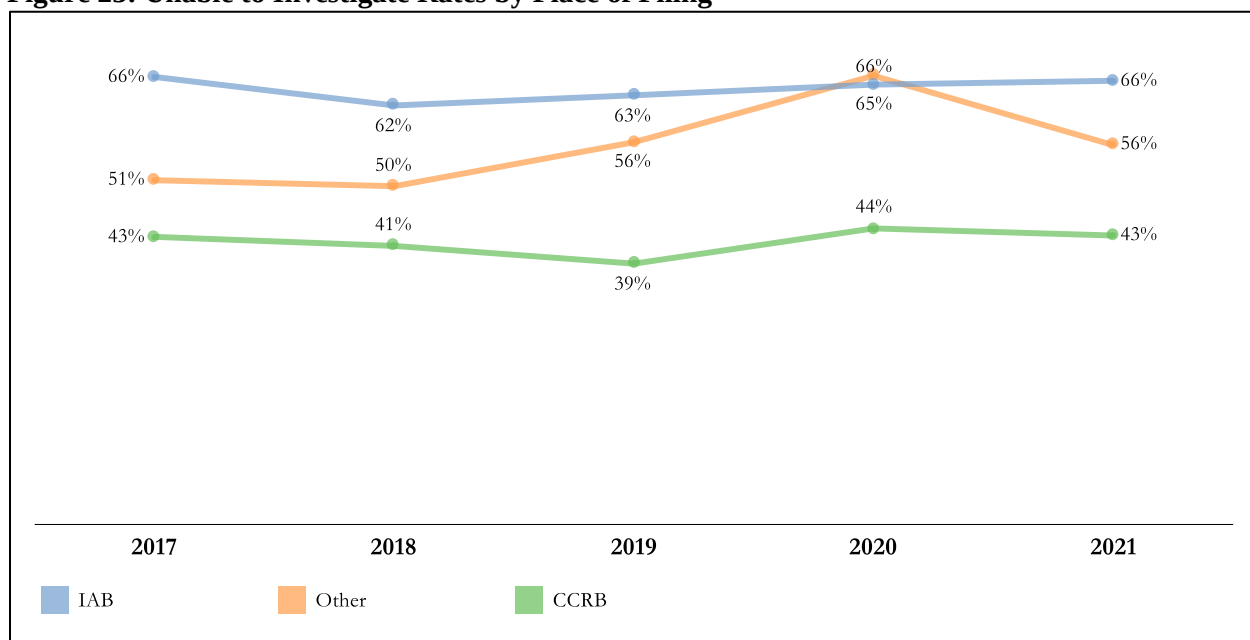
¹⁶ Miscellaneous closures are not included in the Unable to Investigate rate.

Figure 22: Unable to Investigate vs. Complaint Withdrawn Closures



When complaints are not filed directly with the CCRB, it is often difficult to make contact with the complainant or victim, as other agencies may not have notified them that their complaint was referred to the CCRB. This can cause confusion and reduce the likelihood that complainants will cooperate when contacted by CCRB investigators, if they can be contacted at all.

Figure 23: Unable to Investigate Rates by Place of Filing



COMPLAINT AND ALLEGATION DISPOSITIONS FOR FULLY INVESTIGATED CASES

To understand the data presented in the following section, it is important to understand the CCRB terminology used in determining complaint and allegation dispositions.

Allegations that are fully investigated by the CCRB generally result in one of five outcomes:

- An allegation is **Substantiated** if the alleged conduct is found to have occurred and is improper based on a preponderance of the evidence.¹⁷
- An allegation is **Within NYPD Guidelines**¹⁸ if the alleged conduct is found to have occurred but was not found to be improper by a preponderance of the evidence. Allegations may be Within NYPD Guidelines if the officer's behavior was found to be allowed under the law and/or the Patrol Guide. This does not mean that the complainant was untruthful in their account of the incident. Many members of the public are not aware of the range of law enforcement activities that are legally permissible and within the boundaries of proper NYPD protocol.
- An allegation is **Unfounded** if the alleged conduct is found by a preponderance of the evidence not to have occurred as the complainant described.
- An allegation is closed as **Officer Unidentified** if the CCRB was unable to identify the officer accused of misconduct.
- An allegation is closed as **Unable to Determine**¹⁹ if there is insufficient evidence to determine whether or not misconduct occurred by a preponderance of the evidence.

The disposition of a fully investigated complaint depends on the disposition of the fully investigated allegations within the complaint:

- A complaint is substantiated if any allegation within the complaint is substantiated.
- A complaint is within NYPD guidelines if all the allegations made against identified officers are within NYPD guidelines.
- A complaint is unfounded if there are no substantiated or Unable to Determine allegations and there is at least one unfounded allegation.
- A complaint is closed as officer unidentified if the CCRB was unable to identify any of the officers accused of misconduct.
- A complaint is unable to determine if there are no substantiated allegations and there is at least one unable to determine allegation.

The following section provides case abstracts to help readers better understand the distinctions between the different dispositions of fully investigated allegations.

¹⁷ "Preponderance of the evidence" is an evidentiary standard used in civil cases, and is commonly interpreted to mean that the fact in question was determined to be "more likely than not" true. *See Foran v. Murphy*, 73 Misc.2d 486 (2d Dept 1973) ("In a disciplinary proceeding, . . . it is sufficient if respondent finds the specifications established by a fair preponderance of the evidence."); *Dep't of Correction v. Jones*, OATH Index No. 393/04 (May 3, 2004) ("burden of proof in this administrative proceeding to prove misconduct by a preponderance of the credible evidence").

¹⁸ Within NYPD Guidelines is reported to the Commissioner as Exonerated, meaning there was a preponderance of the evidence that the acts alleged occurred but did not constitute misconduct.

¹⁹ Unable to Determine is reported to the Commissioner as Unsubstantiated, meaning that there was insufficient evidence to establish whether or not there was an act of misconduct.

The following case abstracts are taken from complaints closed in 2021 and serve as examples of what the different case dispositions mean in practice:

1. Substantiated

Police Officer Joseph Everett and Police Officer Kevin Vega received a 911 call stating that an individual was cursing and threatening her neighbors. The 911 caller described the individual as non-violent, and the 911 dispatcher categorized the individual as an emotionally disturbed person (EDP). PO Everett and PO Vega were the first people to reach the individual's home. The individual came out of her home and approached them. PO Everett and PO Vega told the individual that someone had called 911 and claimed that she was walking up and down the middle of the street. The individual replied that it was a lie and that she only just returned from the grocery store. EMTs arrived and none of them spoke to the individual. PO Everett and PO Vega told the individual that she was going to be removed to the hospital for evaluation. The individual was handcuffed and removed to the hospital.

NYPD Patrol Guide 221-1 states that officers may take a civilian into protective custody when they reasonably believe that the civilian is apparently mentally ill or emotionally disturbed and is conducting himself in a manner likely to result in a serious injury to himself or others.

PO Everett and PO Vega were captured on BWC footage declaring that the individual was an EDP, that the individual never acted in a violent or threatening manner, and that the two people who were outside when PO Everett and PO Vega arrived did not witness any dangerous behavior on the part of the individual at the time of the incident. The investigation found that PO Everett and PO Vega did not have grounds to reasonably believe that the individual needed to be taken into protective custody to prevent serious injury to herself or others. The Board substantiated the Abuse of Authority allegation.

2. Within NYPD Guidelines

An individual stated that she lived with an ex-boyfriend in a two-level apartment. She stated that she was doing laundry in the basement when she heard loud noises from multiple people coming from upstairs. She stated that she was not expecting anyone, became alarmed and hid in her bedroom, which was also in the basement. She stated that people identifying themselves as police officers came to her bedroom door and spoke through the door, trying to get her to leave her bedroom. The individual believed that the call was a ploy by her ex-boyfriend to seek revenge for the break-up. She stated that she told the officers that she was fine, but they ignored her, and she denied needing medical attention. She stated that Sergeant Daniel Crisan arrived and forced her bedroom door open. She stated that she was rear cuffed, taken upstairs, and was placed in an ambulance that took her to the hospital.

BWC footage, as well as cellphone video taken by the individual, showed that police officers arrived at the residence and verified the individual's history with her ex-boyfriend, his 911 call, as well as the ex-boyfriend being a legal resident of the shared two-level apartment. The officers saw the individual as she stood upstairs and followed her as she went downstairs to her bedroom. Over a 40-minute timespan, both the officers and EMTs tried to talk the individual out of her room. The EMTs decided that the individual should be taken to the hospital. Sgt. Crisan arrived on scene and conferred with the onsite officers and EMTs.

Sgt. Crisan then went to the individual's bedroom and used his shoulder to push the bedroom door open in a calm manner. Other officers came in and rear cuffed the individual and there was no struggle. The individual was escorted out, and she was told that they were taking her to the

hospital. The Board found Sgt. Crisan's conduct to be within the Department's guidelines and closed the Abuse of Authority allegation as being Within NYPD Guidelines.

3. Unfounded

A minor individual, who lived with her mother, stated that she was cleaning their apartment when her mother started to physically assault her over a fifteen-minute period. The individual's mother then proceeded to call the police, and the individual left the building because she wanted to avoid any confrontation. The individual returned home with some friends. When the individual arrived at the apartment, Police Officer Alexander Cubano asked her to verify her identity. She confirmed her identity then tried to exit the apartment without saying anything else to PO Cubano. PO Cubano followed her and grabbed her arm and the individual hit him to get him off of her. The individual alleged that PO Cubano put her in a chokehold. The incident was captured on BWC, which showed PO Cubano only holding onto her arm, not placing the individual in a chokehold. The Board closed the Use of Force allegation as Unfounded.

4. Officer Unidentified

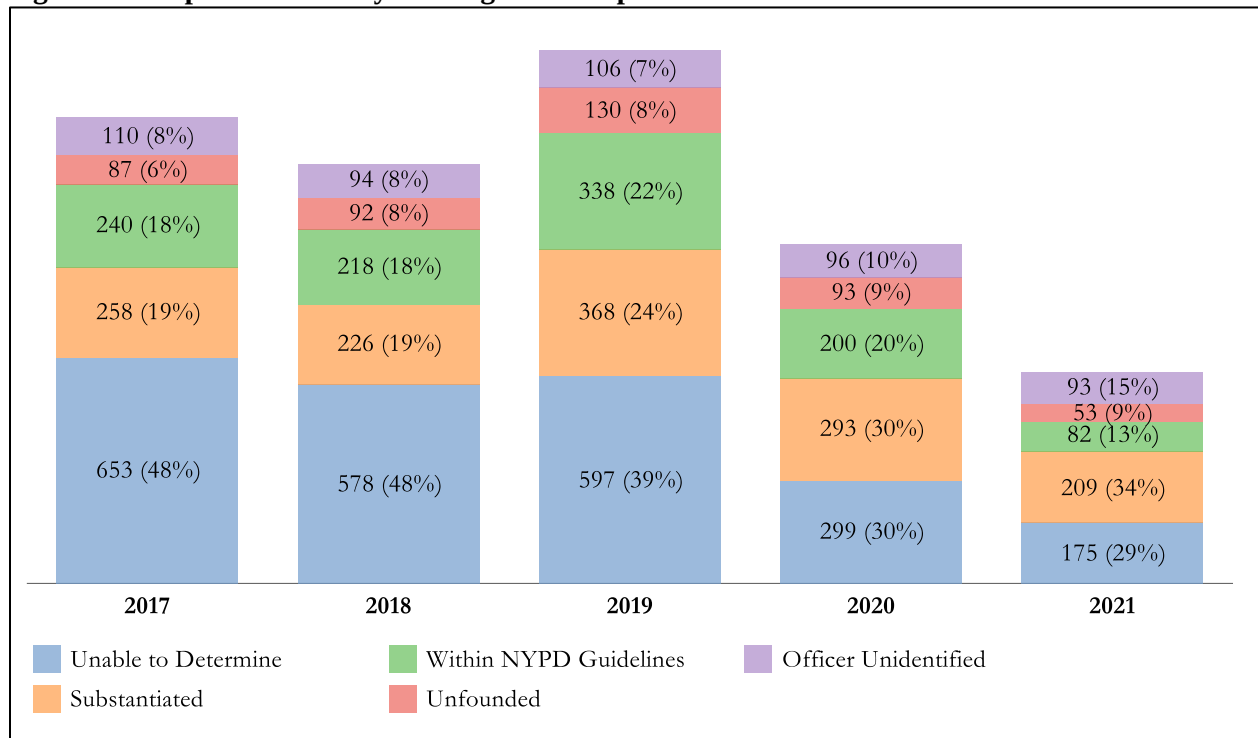
An individual was standing with at least two dozen other individuals on a sidewalk as part of a protest group. The individual observed approximately 20 police officers armed with batons. The officers pushed the individual and several other protestors with batons. The individual took a photograph of the scene moments before she and the other protestors were pushed. The individual was able to identify one of the officers in the photograph as a participant in the pushing of the protestors. The subject officer's nameplate, shield number, and identifying features were too difficult to decipher. BWC footage taken around the time and incident location did not provide relevant information concerning the incident. An officer who witnessed the incident stated that he could not identify any of the police officers present, nor who gave the command to use batons to push protestors. The Board closed the Use of Force allegations as Officer Unidentified.

5. Unable to Determine

An individual owned a member's only club where patrons paid a \$30 monthly fee. The club was in operation when Detective Michael Wolfe, Detective Richard Degaetano, and Lieutenant Terrance McCall (the subject officers) entered the club. The individual alleged that the subject officers opened a locked storage room and seized a digital video recorder. The subject officers stated that they entered the room for the sole purpose of retrieving the DVR which had footage of undercover officers who had entered the club a few minutes prior to verify that alcohol was being sold at the establishment. The subject officers could not recall whether the door to the storage room was locked or whether they got keys from the individual to open the door. The investigation was unable to determine how the subject officers accessed the storage room. The Board closed the Abuse of Authority allegation as Unable to Determine.

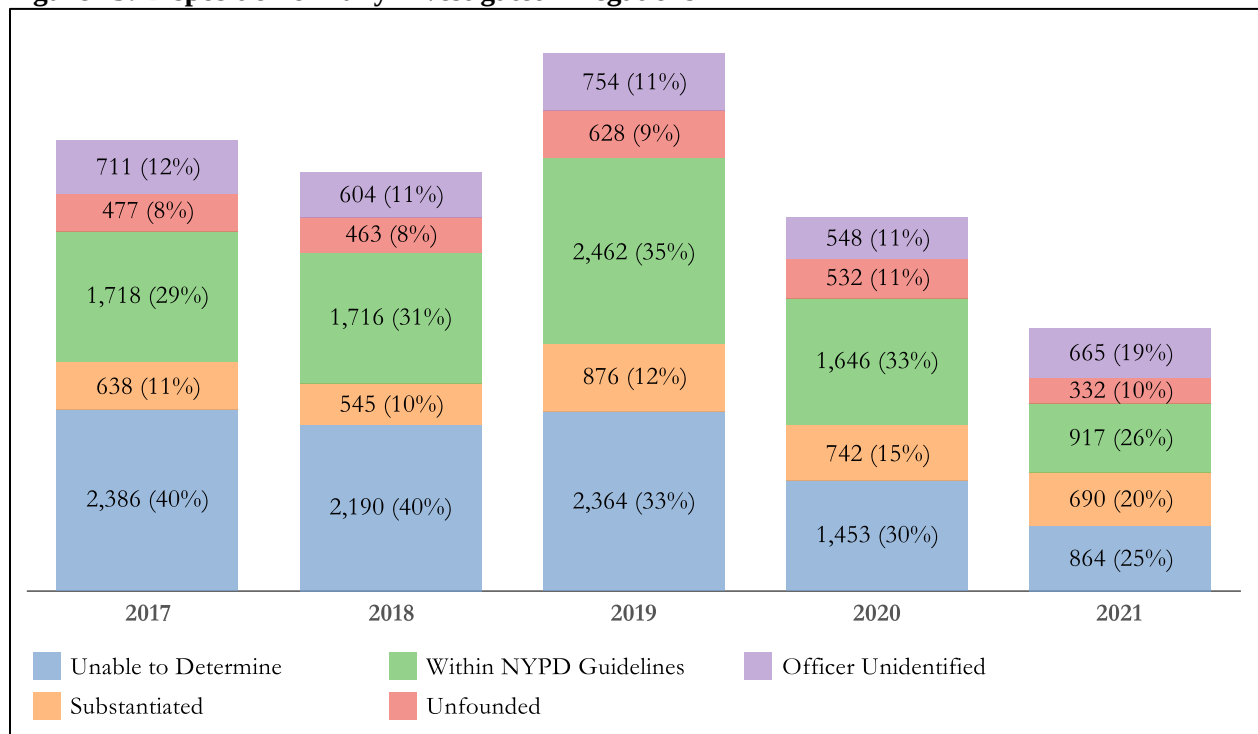
DISPOSITIONS OF COMPLAINTS AND ALLEGATIONS

Figure 24: Disposition of Fully Investigated Complaints



A CCRB complaint may contain one or more allegations. The complaint disposition is a composite of the dispositions of all the distinct allegations within the complaint (see page 27).

Figure 25: Disposition of Fully Investigated Allegations



UNTRUTHFUL STATEMENT ALLEGATIONS

On November 5, 2019, New Yorkers voted to revise the New York City Charter to explicitly include within the CCRB's jurisdiction untruthful material statements made by NYPD members of service to the CCRB. The Charter revision reads as follows:

"The board shall also have the power to investigate, hear, make findings and recommend action regarding the truthfulness of any material official statement made by a member of the police department who is the subject of a complaint received by the board, if such statement was made during the course of and in relation to the board's resolution of such complaint."

To comply with the charter revision, the CCRB created the "Untruthful Statement" allegation type. There are four distinct "Untruthful Statement" allegations:

1. **False Official Statement:** The false official statement allegation requires a showing of three elements by a preponderance of the evidence that: (1) the officer who was the subject of a CCRB complaint made an intentional statement during the course of the CCRB investigation; (2) the officer knew the statement to be untrue; and (3) the statement was material to the outcome of the investigation.
2. **Misleading Official Statement:** Misleading statements are statements in which the officer intends to misdirect the fact finder and materially alter the narrative by omitting material facts, states repeatedly that they do not recall the event or specific actions when a reasonable person would be expected to recall or have been aware, or when officers materially alter their statement after being confronted with evidence which contradicts the initial statement.
3. **Inaccurate Official Statement:** This allegation does not require an intent to deceive, but the officer's testimony includes incorrect material information out of gross negligence about knowledge which the officer ought to possess.
4. **Impeding an Investigation:** the CCRB will not doubly charge the officer for the same untruthful act. Instead, this allegation shall be reserved for instances when "an officer engages in impeding actions" such as destroying digital or material evidence or refusing to provide said evidence.

Figure 26: Untruthful Statement Allegations

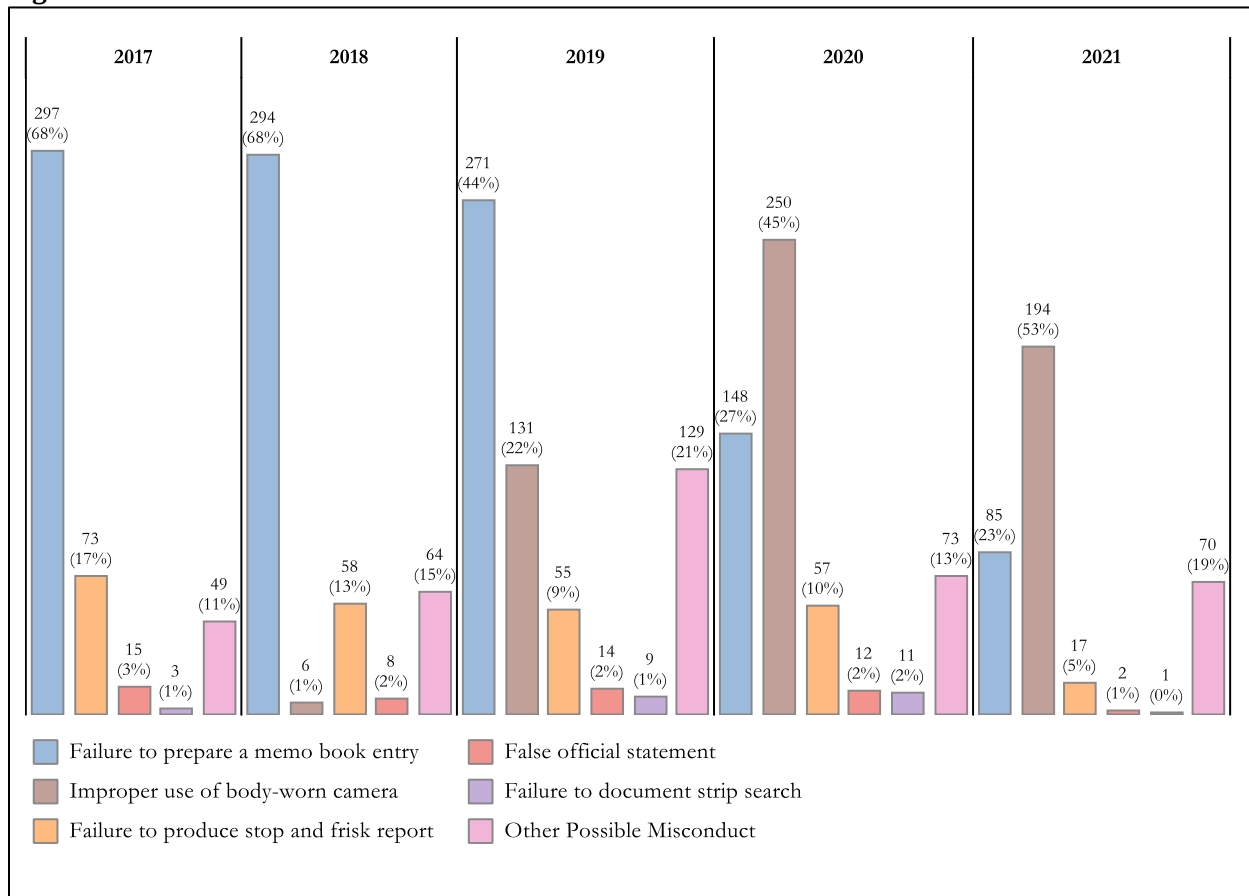
Year	Board Disposition	Inaccurate Official Statement	Misleading Official Statement	Impeding an Investigation	False Official Statement
2020	Administratively Closed	0	0	66	0
	Substantiated (Charges)	0	0	0	1
	Substantiated (Command Discipline B)	0	1	0	0
	Substantiated (Formalized Training)	0	0	0	0
2021	Administratively Closed	0	0	0	0
	Substantiated (Charges)	0	7	2	14
	Substantiated (Command Discipline B)	0	0	0	0
	Substantiated (Formalized Training)	1	0	0	0

OTHER POSSIBLE MISCONDUCT NOTED AND FALSE OFFICIAL STATEMENTS

When a CCRB investigation reveals evidence of a Patrol Guide violation that falls outside of the CCRB’s jurisdiction, the Board files this as “other possible misconduct noted” (OPMN) and reports it to IAB for further investigation and possible disciplinary action.

OPMN allegations should not be confused with allegations of corruption or potential criminal conduct, which are also referred to IAB.

Figure 27: Other Possible Misconduct Noted



SECTION 3: DISCIPLINARY PROCESS

DISCIPLINARY PROCESS AND THE CCRB'S ADMINISTRATIVE PROSECUTION UNIT (APU)

After the CCRB substantiates an allegation of misconduct, the NYPD portion of the disciplinary process begins. Although the CCRB recommends the discipline that it deems appropriate, pursuant to the New York City Charter²⁰, New York City Administrative Code²¹, and New York State Civil Service Law,²² the Police Commissioner has final approval over all member of service (MOS) discipline. The Commissioner can accept, reject, or modify any discipline recommendation made by the CCRB.

For each allegation of misconduct, the Board recommends one of five basic types of discipline, listed below in ascending order of severity:

1. **Instructions:** guidance issued by a commanding officer.
2. **Formalized Training:** given at the Police Academy or the Legal Bureau.
3. **Command Discipline A:** issued by the commanding officer and may include a penalty ranging from instructions up to the MOS forfeiting five vacation days. A Command Discipline A is automatically removed from a MOS' Central Personnel Index after one year.²³
4. **Command Discipline B:** issued by the commanding officer and may include a penalty ranging from instructions up to the MOS forfeiting 10 vacation days. A MOS can request that a Command Discipline B be removed from his or her Central Personnel Index after three years.
5. **Charges and Specifications:** leads to a prosecutorial process in which a MOS may either enter a guilty plea or go to trial before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT), who makes a guilty or not guilty determination. The Police Commissioner has final approval of all dispositions, but generally follows the recommendation of the DCT or ADCT.

²⁰ New York City Charter §440(d)3

²¹ New York City Administrative Code § 15-08; New York City Administrative Code § 15-17

²² NYS Civil Service Law § 75(3-a).

²³ A Central Personnel Index is a MOS's personnel record.

OVERVIEW OF DISCIPLINARY PROCESS

When the Board recommends Instructions, Formalized Training, or Command Discipline against a MOS, that recommendation is sent to the Department Advocate's Office (DAO). The DAO is the unit within the NYPD that reviews CCRB's disciplinary recommendations and recommends to the Police Commissioner whether to impose, modify, or reject the discipline recommended by the CCRB.

When the Board recommends Charges and Specifications, in most instances the substantiated allegations are prosecuted by the Administrative Prosecution Unit (APU). Under the terms of a Memorandum of Understanding (MOU) between the CCRB and the NYPD²⁴, signed in 2012 and in effect since 2013, the APU prosecutes misconduct before the Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The MOS can accept a plea offer from an APU prosecutor in lieu of a trial. If the MOS chooses to go to trial and is found guilty, the trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any penalty recommendation, no matter how it is reached.

²⁴ https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

Figure 28: Complaints Substantiated & Officers with Substantiated Allegations



Figure 29: Board Recommendations for Officers with Substantiated Allegations

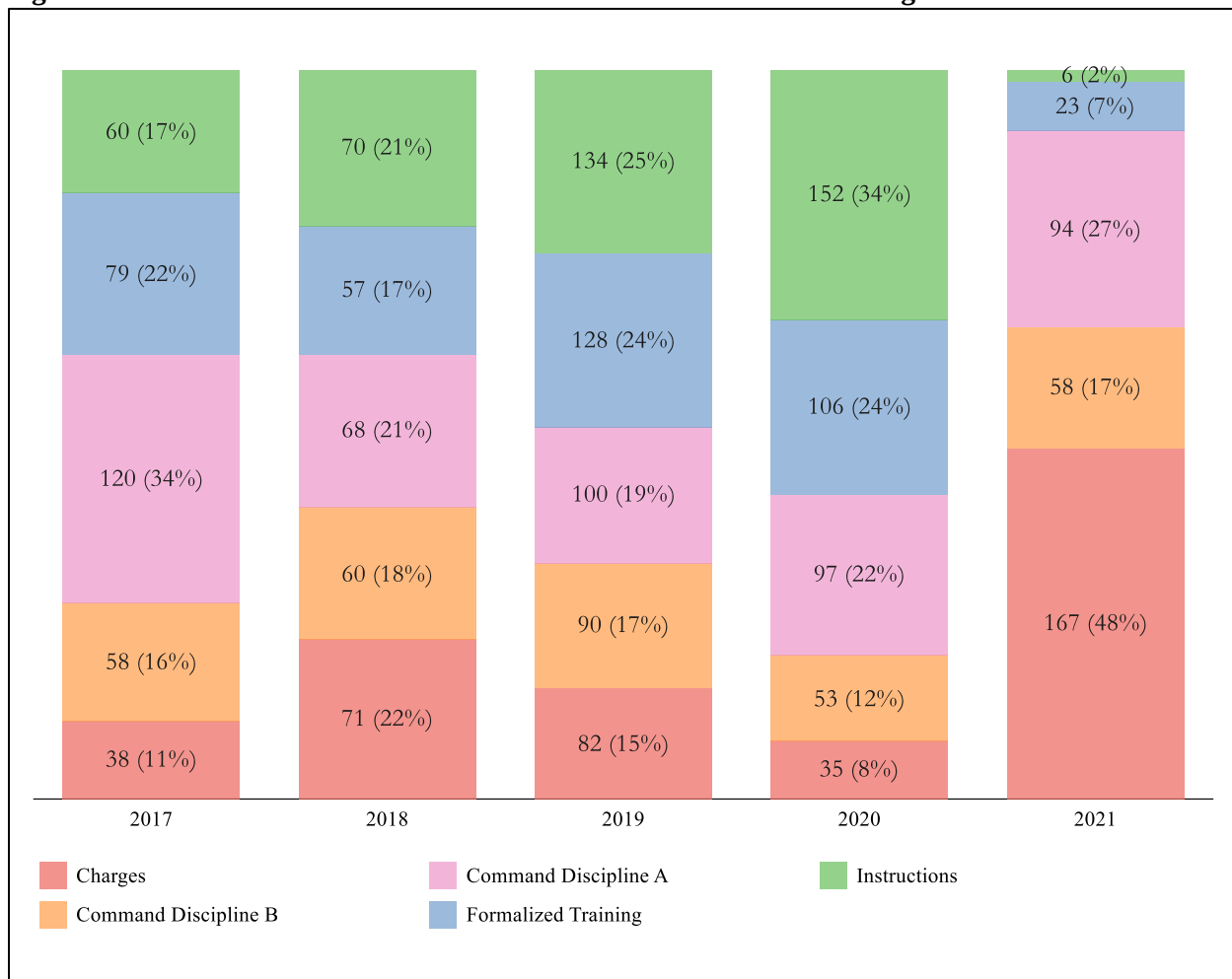
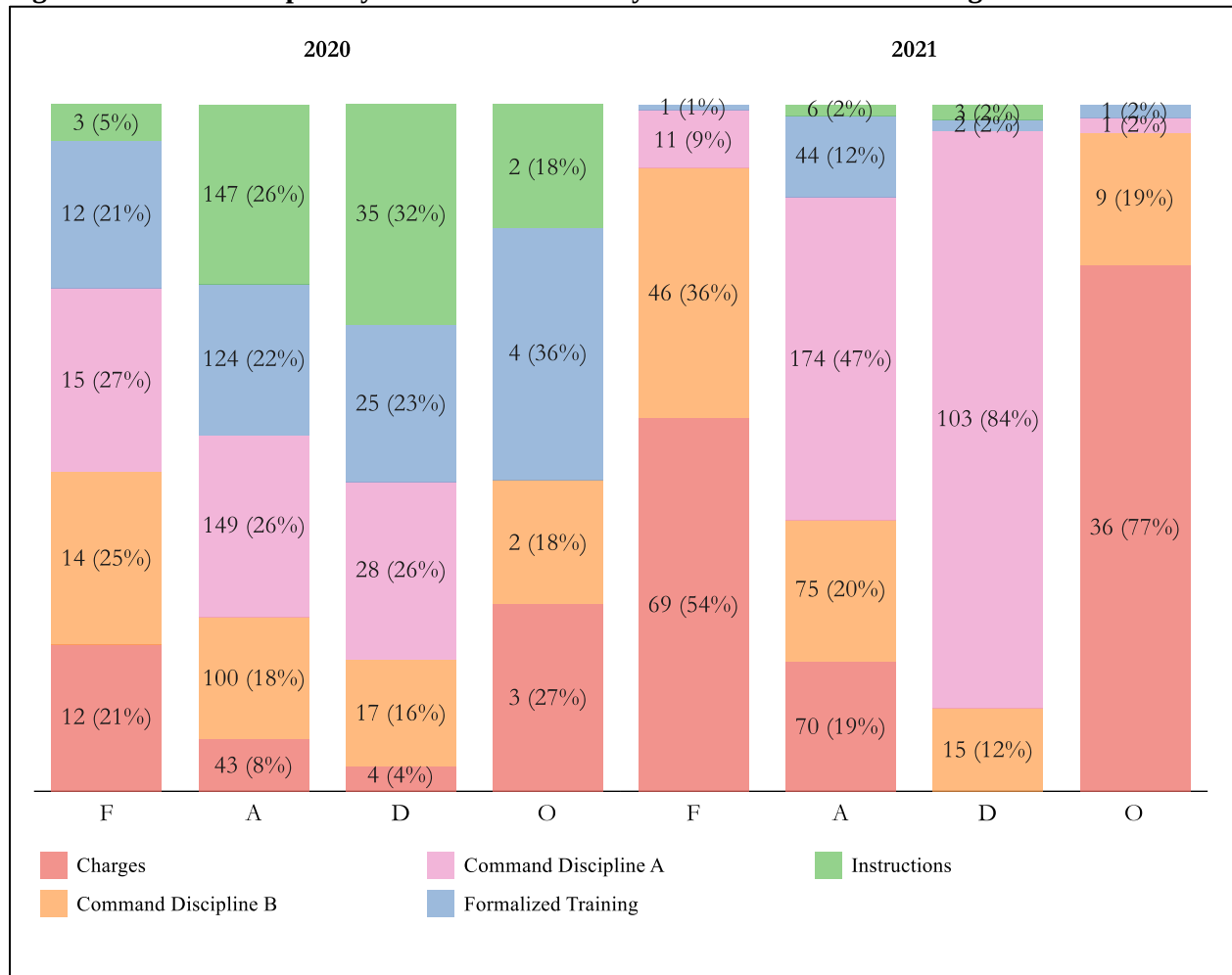


Figure 30: Board Disciplinary Recommendations by Substantiated FADO Allegations



NYPD DISCIPLINARY DECISIONS

There are two paths for discipline after the Board substantiates misconduct, depending on the type of discipline recommended for the officer. The DAO handles cases where the Board recommends Command Discipline, Formalized Training, or Instructions. The APU handles cases where the Board recommends Charges and Specifications.

When a substantiated allegation against an officer is referred to the DAO, the CCRB makes a recommendation regarding what disciplinary action should be taken. The DAO reports the final discipline imposed by the Police Commissioner, if any, back to the CCRB.

Figure 31: Department Advocate’s Office Disciplinary Actions on Non-Charges²⁵ Cases

NYPD Disciplinary Action	2017		2018		2019		2020		2021	
	Count	% Total	Count	% Total	Count	% Total	Count	% Total	Count	% Total
NYPD Pursued Discipline: Charges	8	2%	3	1%	2	1%	3	1%	4	1%
NYPD Pursued Discipline: Command Discipline	109	28%	81	23%	70	23%	118	24%	114	36%
NYPD Pursued Discipline: Formalized Training	128	32%	142	40%	87	29%	109	22%	83	27%
NYPD Pursued Discipline: Instructions	42	11%	55	15%	82	27%	212	43%	42	13%
NYPD Pursued No Discipline (DUP)	91	23%	58	16%	46	15%	24	5%	43	14%
Statute of Limitations Expired			4	1%	1	0%	3	1%	1	0%
Filed (officer resigned before PD action)	11	3%	5	1%	7	2%	14	3%	11	4%
Administratively Closed	5	1%	9	3%	10	3%	11	2%	14	4%
Dismissed	2	1%	1	0%					1	0%

POLICE COMMISSIONER DOWNWARD DEPARTURE LETTERS

As a result of the November 2019 New York City Charter amendments, the Police Commissioner must submit a letter to the CCRB explaining any downward departures from the Board’s disciplinary recommendations²⁶. While these letters have always been part of cases closed by the APU, the Charter change extends this requirement to all CCRB cases.²⁷

²⁵ In a small number of cases (labeled as “NYPD Pursued Discipline: Charges” in Figure 34), the CCRB does not recommend Charges and Specifications, but DAO determines that charges are warranted. This may be due to many factors, including that the officer rejected a Command Discipline and elected to go to trial, or the DAO determines that the case is serious enough to rise to the level of charges.

²⁶ New York City Charter §440(d)3

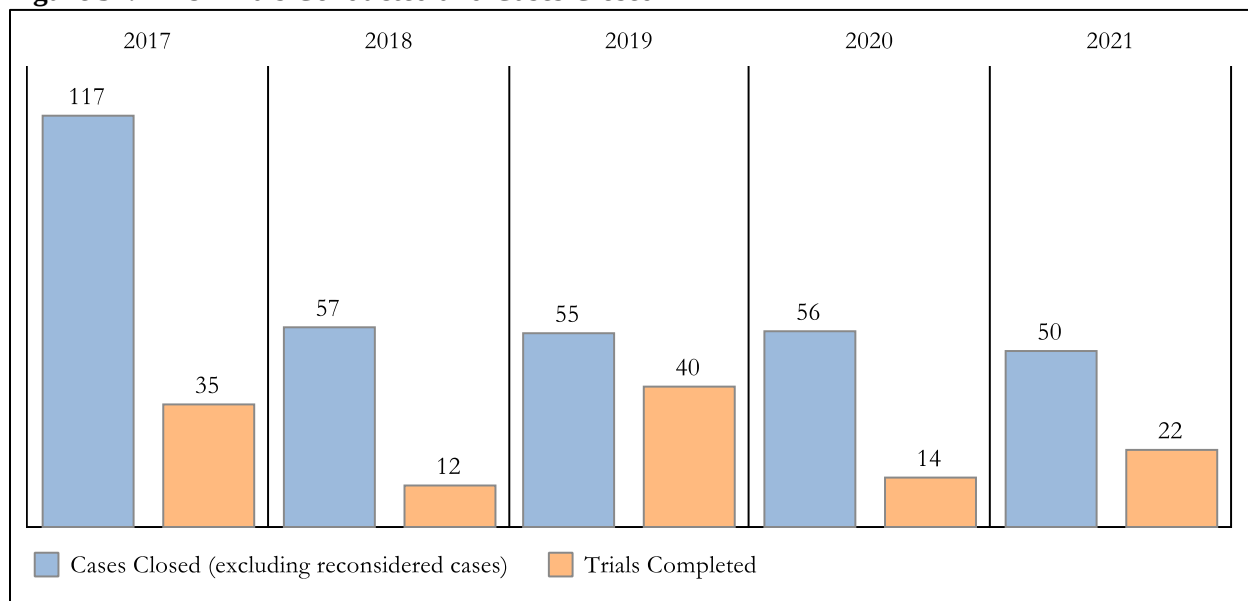
²⁷ The Department informed the CCRB that it is their position that “Instructions from the Commanding Officer is a type of training as is Formal Training at the Academy or from the Legal Bureau. The type of “training”, is fact specific, based on the category of misconduct. Therefore, Departure letters are not required.” The CCRB is working with the Department to resolve this issue.

ADMINISTRATIVE PROSECUTION UNIT

When the Board recommends Charges and Specifications against an officer in a substantiated case, the APU prosecutes the case unless the NYPD retains the case. Retained cases are those in which the NYPD elects, pursuant to Section 2 of the MOU between the NYPD and the CCRB, to keep a case.²⁸ When the NYPD keeps a case pursuant to Section 2, it may or may not impose discipline on the officer.

The APU treats each officer against whom an allegation is substantiated as a separate case.²⁹ A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

Figure 32: APU Trials Conducted and Cases Closed



²⁸ Section 2 of the MOU states, "...in those limited instances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served." For the full text of the MOU, see http://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf.

²⁹ Because the APU treats each officer's substantiated allegations as a separate "case," all APU data discussed in this Report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

Figure 33: APU Case Closures

Disciplinary Action	Not guilty after trial but Discipline Imposed	0
	Guilty after trial	15
	Trial verdict dismissed by PC, Comm. Disc. A imposed	0
	Trial verdict dismissed by PC, Comm. Disc. B imposed	0
	Trial verdict dismissed by PC, Formalized Training imposed	0
	Trial verdict dismissed by PC, Instructions imposed	0
	Trial verdict reversed by PC, Final verdict Guilty	0
	Resolved by plea	5
	Plea set aside, Comm. Disc. B	0
	Plea set aside, Comm. Disc. A	0
	Plea set aside, Formalized Training	0
	Plea set aside, Instructions	0
	*Retained, with discipline	1
	Total	21
No Disciplinary Action	Not guilty after trial	6
	Trial verdict reversed by PC, Final verdict Not Guilty	4
	Plea set aside, Without discipline	0
	**Retained, without discipline	6
	Dismissed by APU	0
	SOL Expired in APU	0
	Total	16
Not Adjudicated	Charges not served	1
	Deceased	0
	Other	1
	***Previously adjudicated, with discipline	4
	***Previously adjudicated, without discipline	0
	†Reconsidered by CCRB Board	0
	Retired	7
	SOL Expired prior to APU	0
	Total	13
Total Closures†		50

*Retained cases are those in which the Department kept jurisdiction pursuant to Section 2 of the April 2, 2012 Memorandum of Understanding between the NYPD and the CCRB.

** When the Department keeps jurisdiction pursuant to Section 2 and does not impose any discipline on the officer, it is the equivalent of a category referred to as "Department Unable to Prosecute" (DUP). Cases are referred to as DUP when the Department decides that it will not discipline an officer against whom the Board recommended discipline other than charges.

*** In some cases, the Department conducts its own investigation and prosecution prior to the completion of the CCRB's investigation. In those cases, the APU does not conduct a second prosecution.

† Under the Board's reconsideration process, an officer who has charges recommended as the penalty for a substantiated allegation may have the recommended penalty changed to something other than charges or have the disposition changed to something other than substantiated. In those cases, the APU ceases its prosecution. The reconsideration process was not used in 2021.

Figure 34: Discipline Imposed for Adjudicated APU Cases

Terminated	0
Suspension for or loss of vacation time of 31 or more days and/or Dismissal Probation	5
Suspension for or loss of vacation time of 21 to 30 days	0
Suspension for or loss of vacation time of 11 to 20 days	2
Suspension for or loss of vacation time of 1 to 10 days	14
Command Discipline B	0
Command Discipline A	0
Formalized Training**	0
Instructions***	0
Warned & Admonished/Reprimanded	0
Disciplinary Action Total	21
No Disciplinary Action	17
Adjudicated Total	38
Discipline Rate	55%
Closed - Not Adjudicated	12
Total Closures	50

DISCIPLINE CONCURRENCE RATES

Figure 35: Non-Charges Discipline Rate

Penalty Outcome	2017		2018		2019		2020		2021	
	Count	% Total	Count	% Total	Count	% Total	Count	% Total	Count	% Total
Discipline Concurrence	169	43%	187	52%	155	51%	361	73%	209	67%
Discipline Difference	118	30%	94	26%	86	28%	81	16%	34	11%
No Discipline	91	23%	58	16%	46	15%	24	5%	43	14%
Other	18	5%	19	5%	18	6%	28	6%	27	9%
Grand Total	396	100%	358	100%	305	100%	494	100%	313	100%

The “Other” category include cases in which the MOS resigned before discipline could be imposed, cases where the statute of limitations expired before discipline could be imposed, cases that were administratively closed, and cases where the Charges and Specifications were dismissed.

Figure 36: APU Discipline and Penalty Concurrence Rate

APU Penalty Outcome	2017		2018		2019		2020		2021	
	Count	% Total	Count	% Total	Count	% Total	Count	% Total	Count	% Total
Discipline Concurrence	31	27%	17	33%	15	31%	9	19%	10	27%
Not Guilty	39	34%	3	6%	13	27%	10	21%	6	16%
Guilty Verdict Reversed - final verdict not guilty	4	3%	1	2%	1	2%	3	6%	4	11%
Penalty Lower Than Requested At Trial	21	18%	8	16%	9	19%	8	17%	10	27%
Plea Modified - penalty reduced	5	4%	10	20%	1	2%	8	17%		
Plea Set Aside - no discipline imposed	3	3%								
Plea Set Aside - discipline imposed	6	5%	1	2%						
Retained - discipline imposed	4	3%	9	18%	7	15%	8	17%	1	3%
Retained - no discipline imposed	2	2%	2	4%	2	4%	1	2%	6	16%
Grand Total	115	100%	51	100%	48	100%	47	100%	37	100%

Cases in which the Police Commissioner modified a plea but increased the penalty are included in the concurrence rate. The “Penalty Lower than Requested at Trial” category includes cases in which the officer was found not guilty of some (but not all) allegations, leading to the overall reduction of penalty.

SECTION 4: MEDIATION

The New York City Charter mandates that the CCRB offer mediation as an option for resolving allegations of police misconduct. The goal of mediation is to allow civilians and officers the opportunity to voluntarily resolve the issues contained in the complaint by means of a face-to-face meeting with the assistance of a neutral mediator.

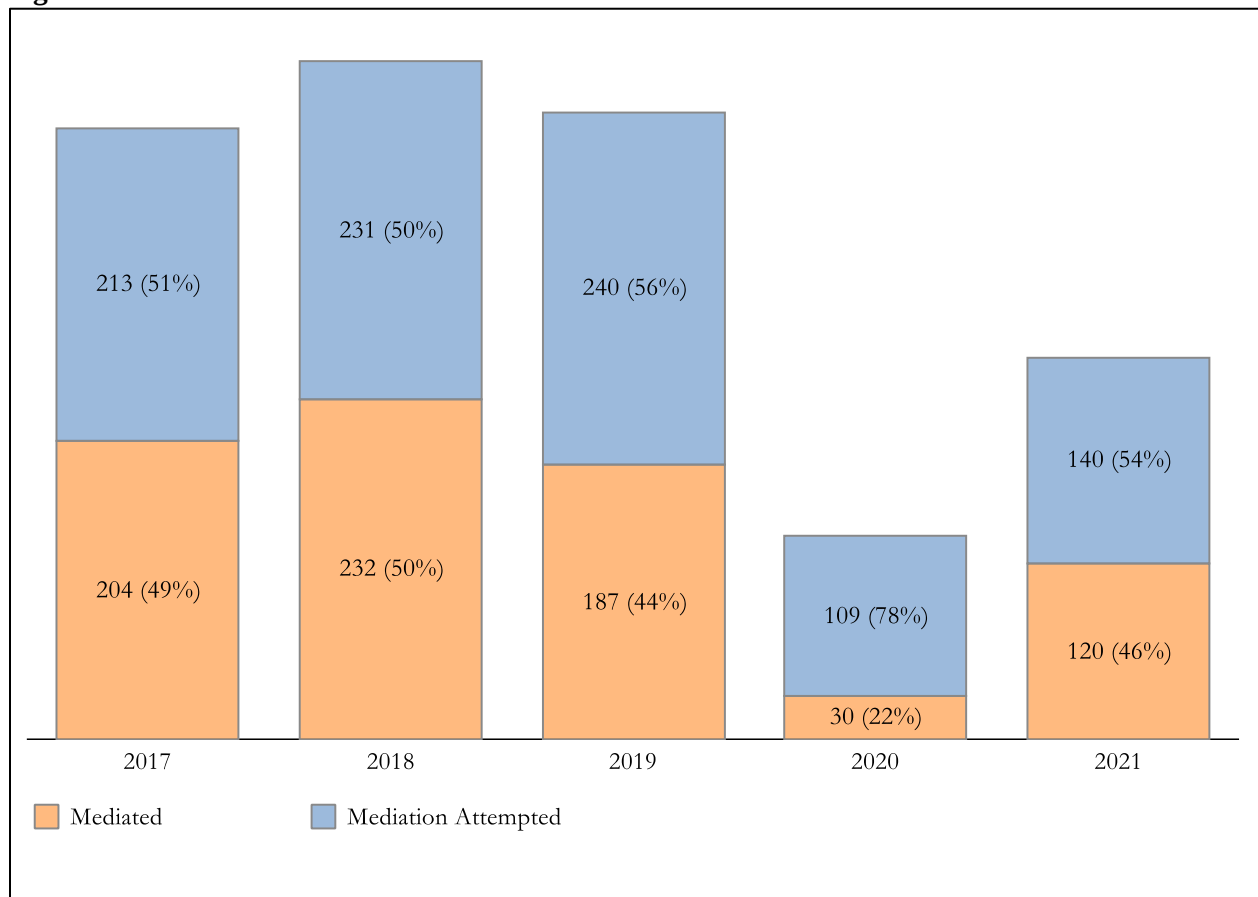
Mediation is not offered in all cases because there are some factors that render a complaint unsuitable for the Mediation Program, these include allegations of serious physical injury or property damage, a pending criminal case or a civil lawsuit, or a concurrent Internal Affairs Bureau investigation.

Mediation is complainant-driven and voluntary; a case will only go to the Mediation Unit if the complainant wants to participate in mediation. Investigators are required to fully describe both the mediation process and the investigative process to complainants in mediation-suitable cases. After being provided with both options, the complainant can choose the process in which to participate. If the complainant selects mediation, the option is then presented to the officer. Mediations only take place when both the complainant and the officer have voluntarily agreed to mediate the complaint. Complainants reserve the right to have the case returned to the investigation process if they change their mind prior to a mediation or are unsatisfied with the outcome of the mediation.

A mediation session ends when all parties involved agree that they have had an opportunity to discuss the issues in the case. In most mediated cases, the parties resolve the allegations raised in the complaint. After a completed mediation, the complaint is closed as “mediated,” meaning that there will be no further investigation and the officer will not be disciplined. If the mediation is not completed or not successful, the case returns to the Investigations Division for a full investigation, unless the complainant fails to appear twice for the scheduled mediation session without good cause or fails to respond to attempts to schedule a mediation session and does not request that the investigation resume.

Mediation provides members of the public with complaints against members of service an additional option for resolving their complaints. A trained, neutral mediator contracted by the CCRB guides the session and facilitates a confidential dialogue about the circumstances leading to the complaint.

Figure 37: Mediation Closures



“Mediation attempted” is a designation for a case in which both the officer and the civilian agree to mediate but the civilian either fails to appear twice for the scheduled mediation session without good cause or fails to respond to attempts to schedule a mediation session and the civilian does not request that the investigation resume.

Figure 38: Average Days to Completed Mediation

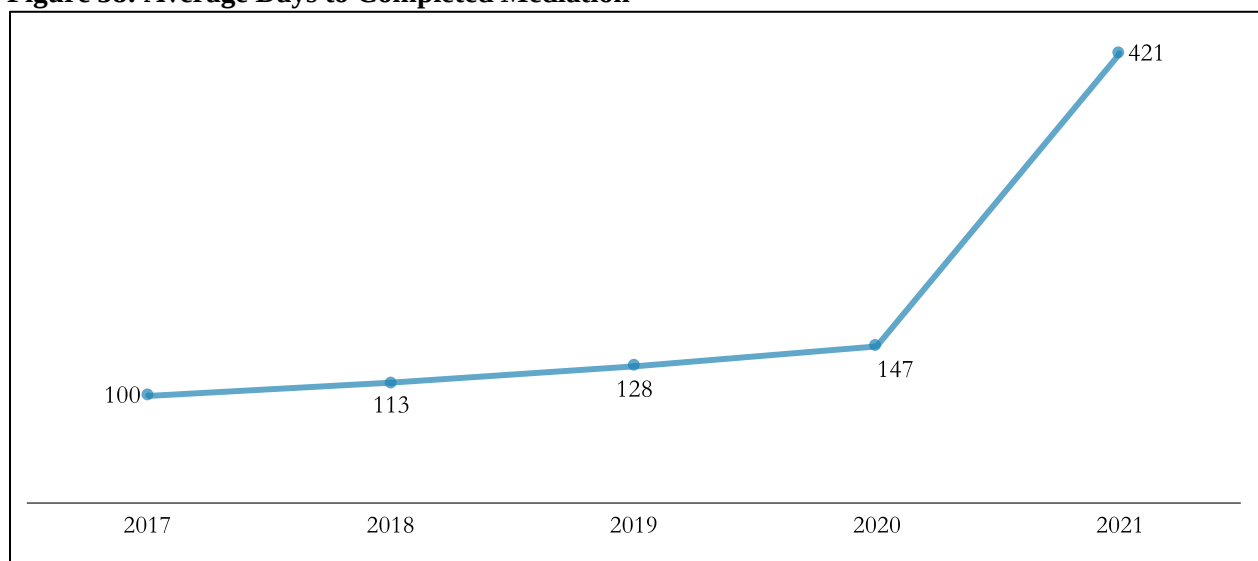


Figure 39: Percentage of Cases in which Mediation was Offered

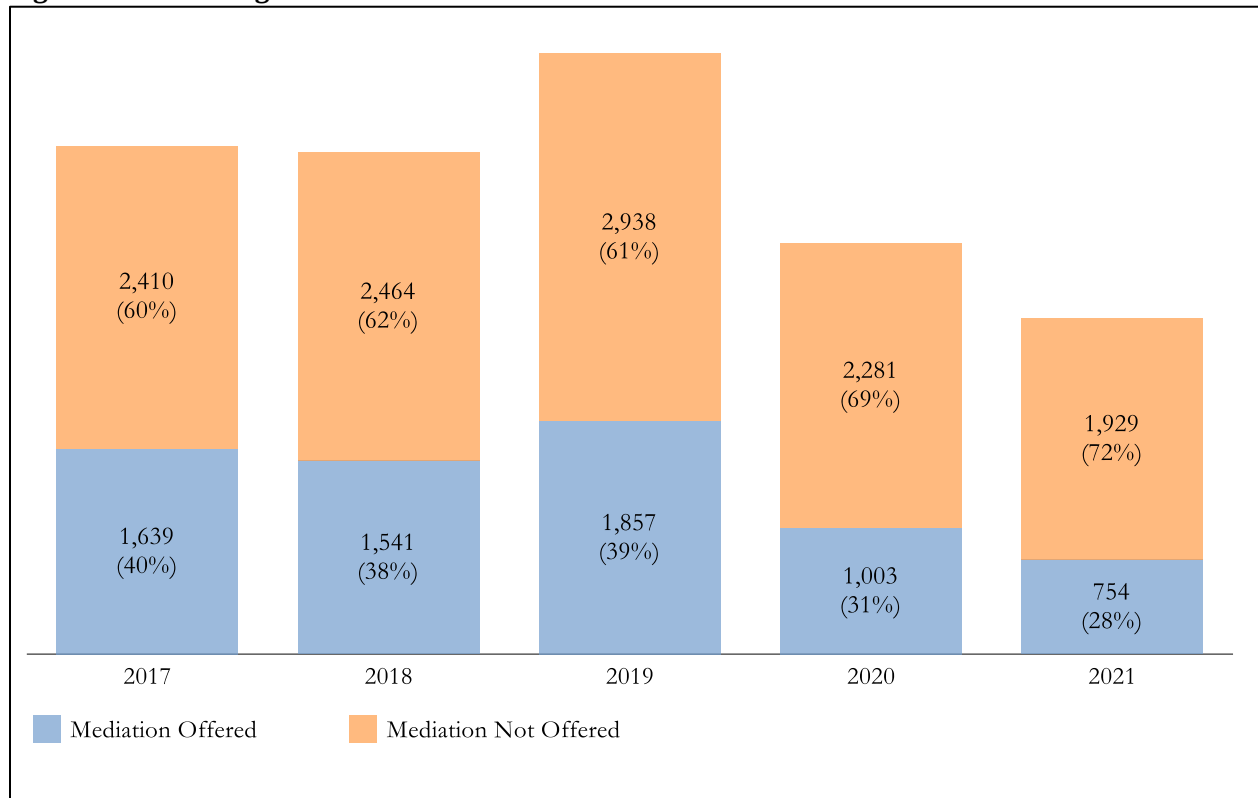


Figure 40: Number of Civilians and MOS that Accepted Mediation

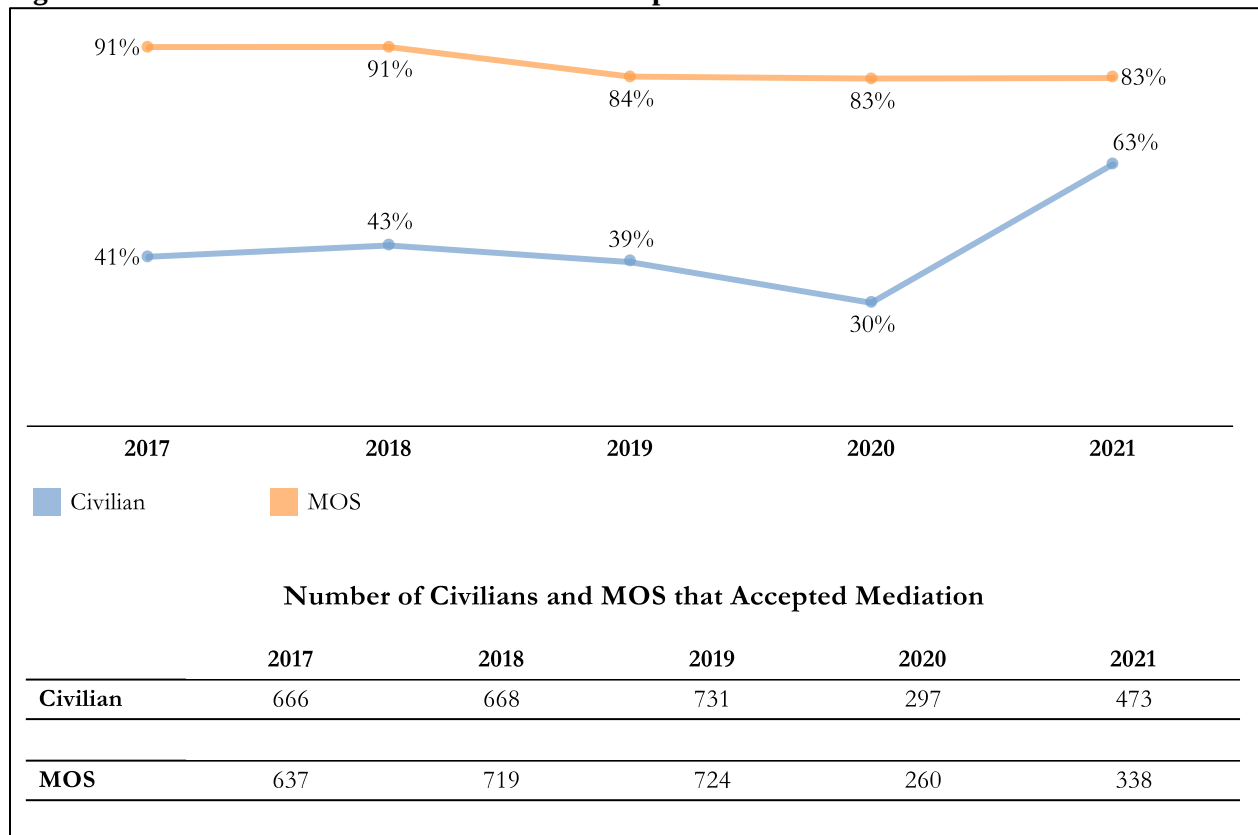
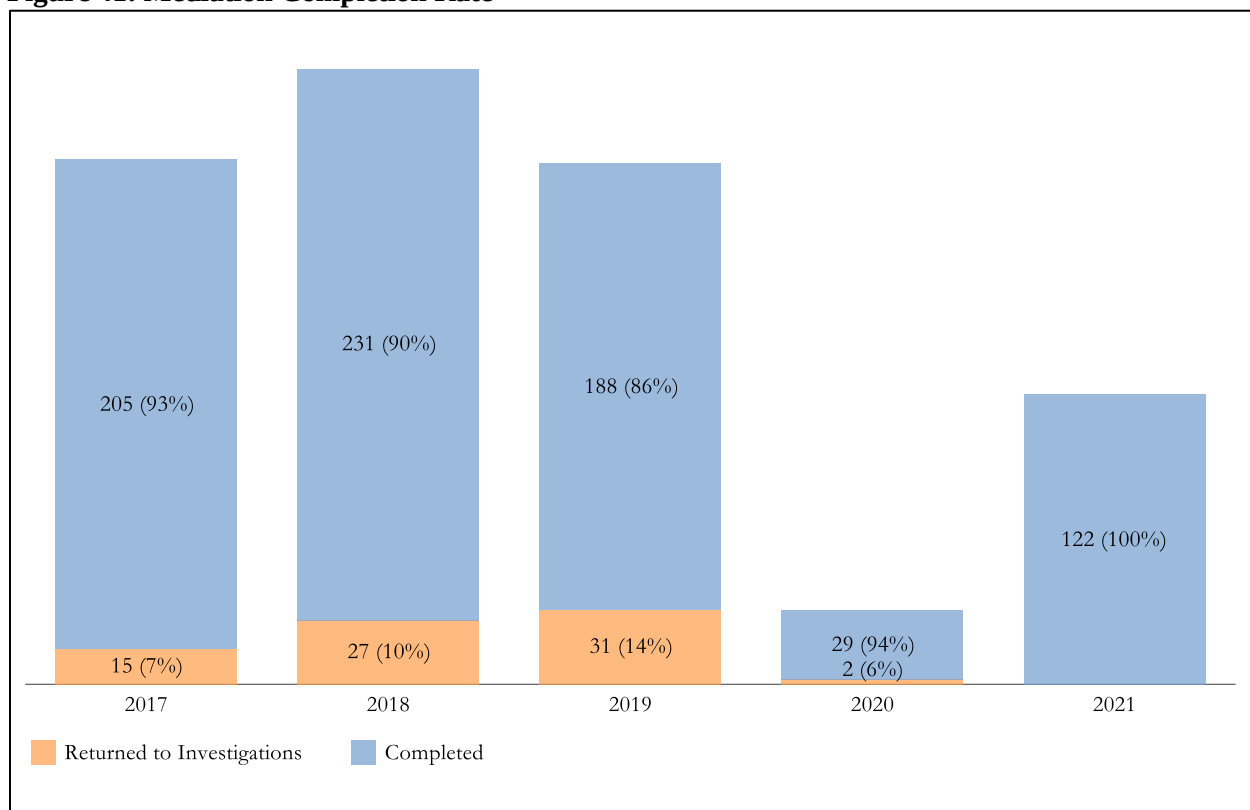


Figure 41: Mediation Completion Rate



SECTION 5: THE IMPACT OF BODY-WORN CAMERA FOOTAGE AND OTHER VIDEO EVIDENCE

In 2013, Judge Shira Scheindlin of the United States District Court for the Southern District of New York, presiding over *Floyd v. City of New York*,³⁰ found that the NYPD violated the Fourth and Fourteenth Amendments through its use of unconstitutional stop, question, and frisk practices. The court also found that the NYPD had a “policy of indirect racial profiling” that disproportionately targeted Black and Hispanic individuals for stops. As a result, the court ordered changes to certain policies, practices, and training curricula and appointed a monitor to oversee these reforms. The court also ordered a one-year Body-Worn Camera (BWC) pilot to determine whether BWCs were effective in reducing unconstitutional stops.

From December 2014 through March 2016, the NYPD conducted a small BWC experiment utilizing 54 volunteer police officers. After reviewing the results of this experiment, the NYPD began the larger-scale court-ordered pilot on a precinct-by-precinct basis starting in April 2017. By December 31, 2018, BWCs had been deployed to 15,826 members of service (MOS) across 81 commands. Today the NYPD’s BWC program is the largest in the United States with over 24,000 members of the Department equipped with BWCs.

The NYPD provides informational videos in several languages, including sign language, about the BWC rollout on its website,³¹ and a copy of the Draft Operations Order governing the use of BWCs is included in Appendix B of the NYPD Response to Public and Officer Input on the Department’s Proposed Body-Worn Camera Policy report.³²

³⁰ *Floyd v. City of N.Y.*, 959 F. Supp. 2d 540 (S.D.N.Y. 2013).

³¹ NYPD, Body-Worn Cameras, <https://www1.nyc.gov/site/nypd/about/about-nypd/equipment-tech/body-worn-cameras.page>

³² NYPD, NYPD Response to Public and Officer Input on the Department’s Proposed Body-Worn Camera Policy (Apr. 2017), https://www1.nyc.gov/assets/nypd/downloads/pdf/public_information/body-worn-camera-policy-response.pdf.

HOW THE CCRB OBTAINS BWC EVIDENCE

In 2021, the CCRB obtained BWC footage from the NYPD via the following process:

1. The CCRB investigator submits a records request to the CCRB's NYPD Relations Unit for BWC footage.
2. The NYPD Relations Unit then forwards the request to the Internal Affairs Bureau (IAB) and the NYPD Legal Bureau. The NYPD Legal Bureau is responsible for fulfilling the request and locating the footage.
3. Once the Legal Bureau has approved the request and located the BWC footage, it passes the BWC footage back to the CCRB NYPD Relations Unit.
4. The Unit makes the footage accessible to the requesting CCRB investigator.
5. If, upon examination, other evidence suggests that the NYPD's response that it was unable to locate BWC footage may have been a false negative (or that additional footage may be available), the CCRB investigator must submit a new request specifying the additional BWC footage that is needed.

Figure 42: Average BWC Request Turnaround Time In Days, Requests Closed

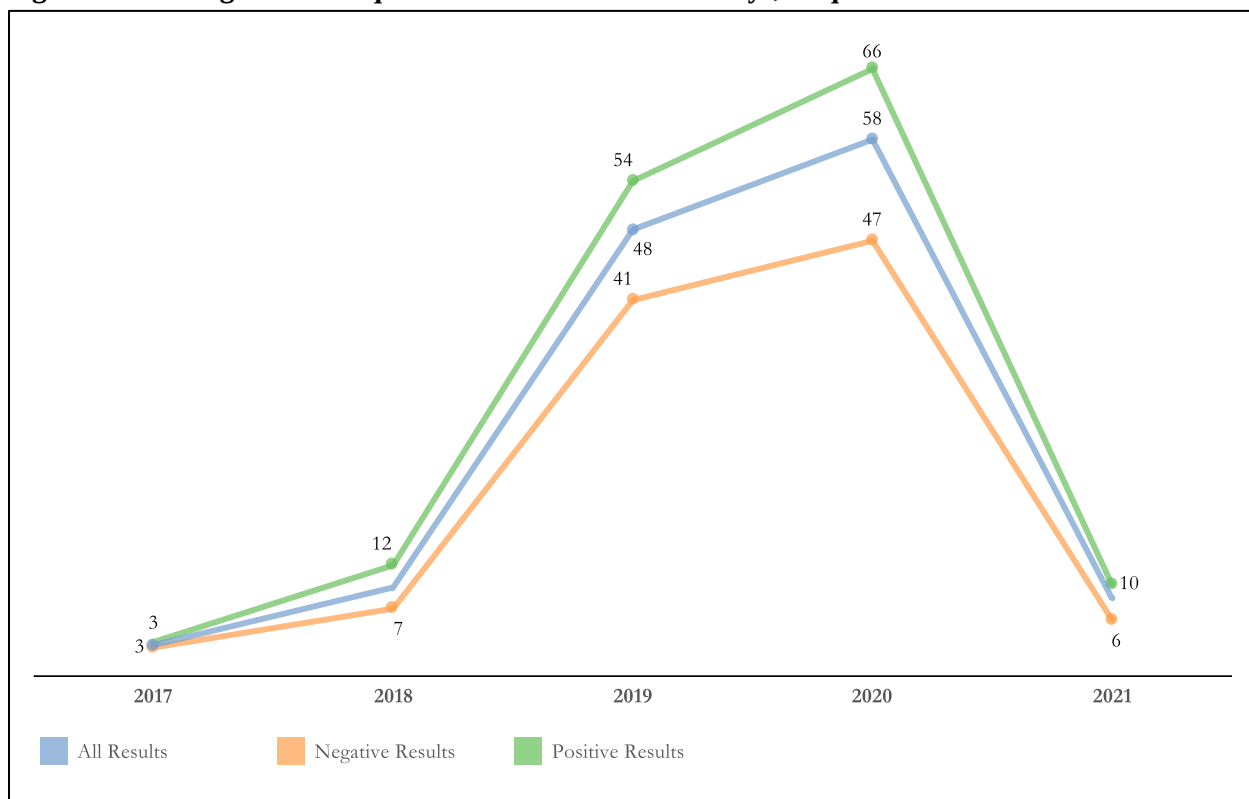


Figure 43: Complaints with Video

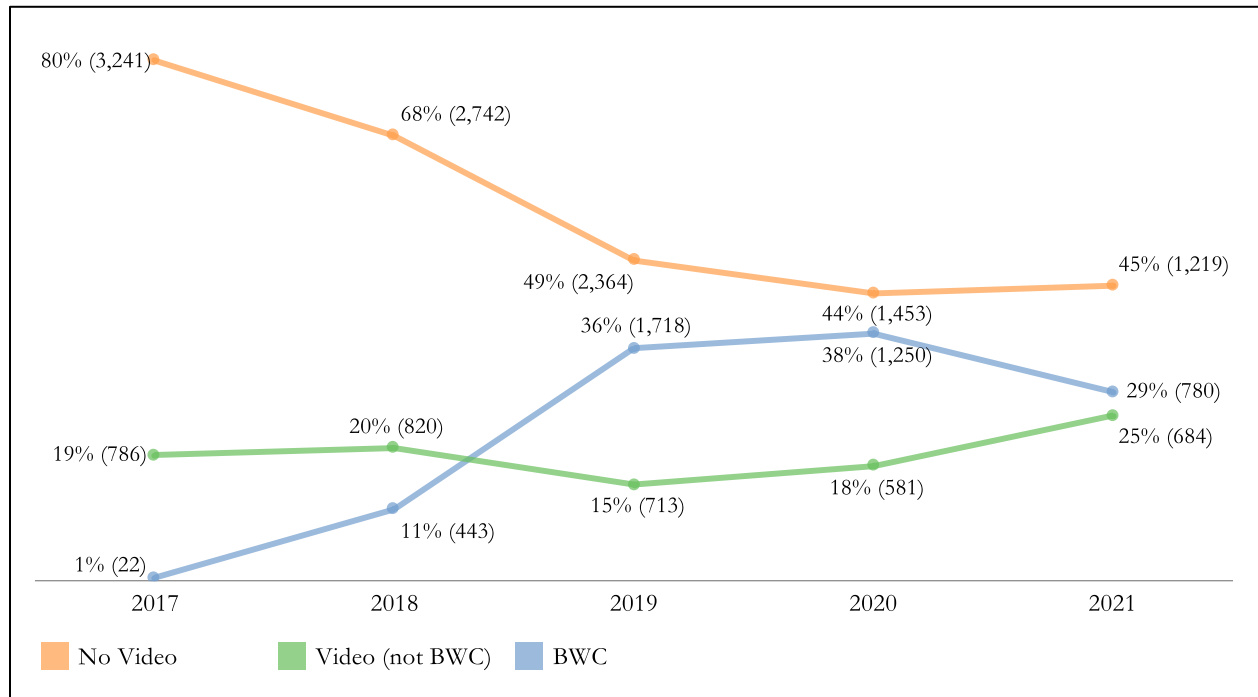
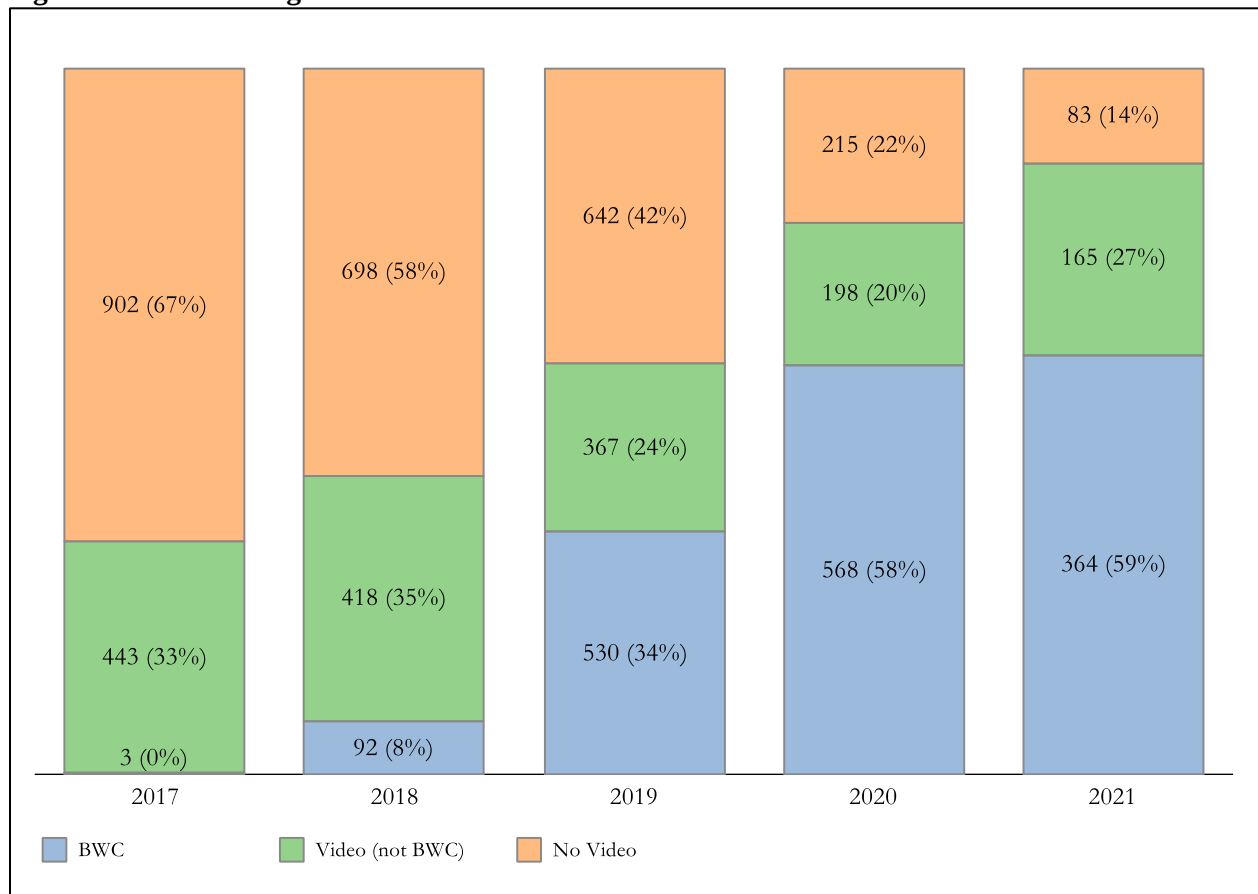


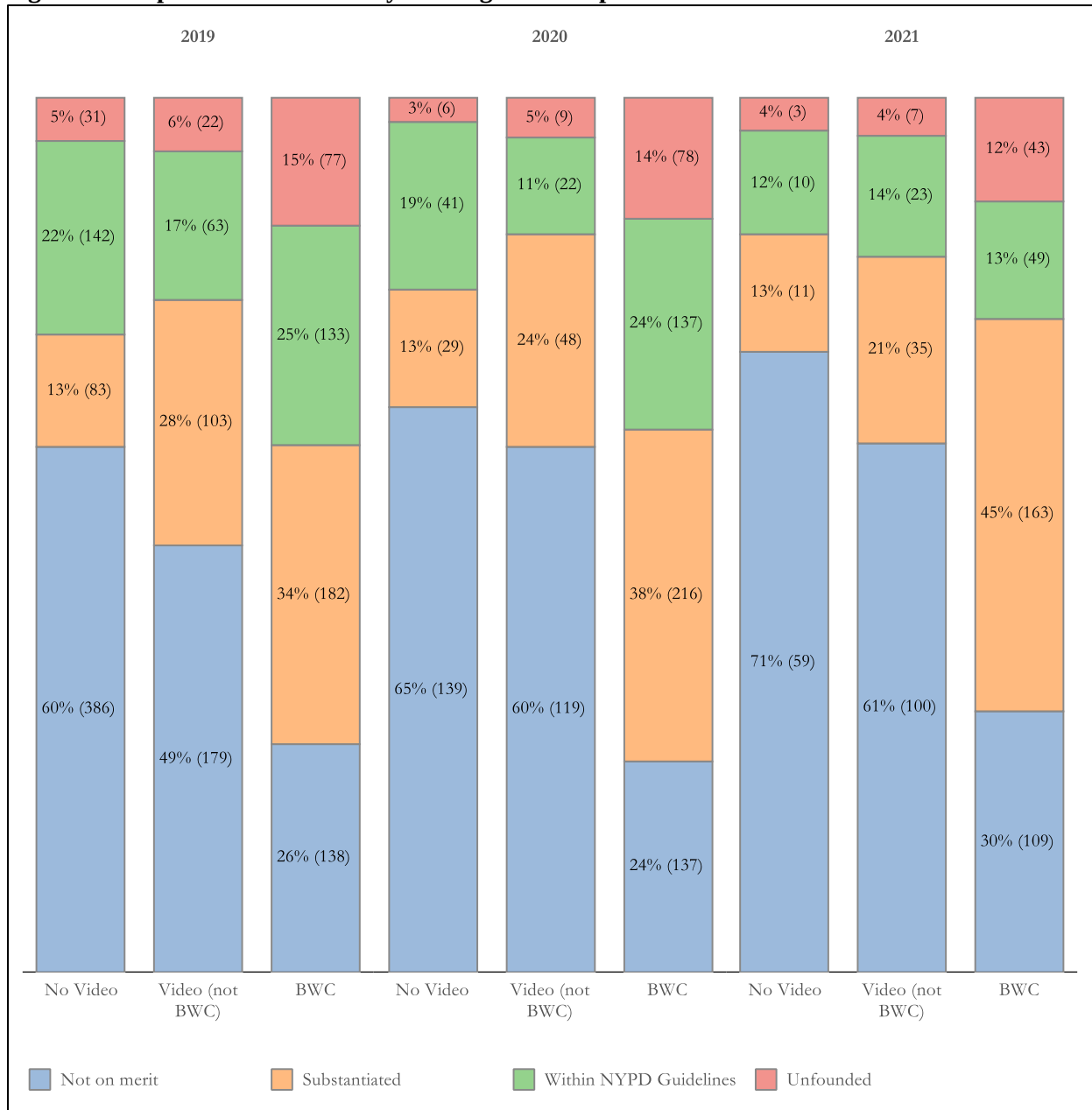
Figure 44: Full Investigations with and without video



THE IMPACT OF BWC AND OTHER VIDEO EVIDENCE

The availability of video evidence allows for clearer interpretation of the circumstances surrounding an encounter. Video evidence, especially BWC footage, can have a substantial impact on the outcome of a CCRB investigation, particularly the rate of allegations closed “on the merits” (i.e., Substantiated, Within NYPD Guidelines, or Unfounded).

Figure 45: Impact of Video on Fully Investigated Complaints Closed on the Merits



The availability of BWC evidence has a particularly significant impact on the Board’s ability to make a decision on the merits regarding Discourtesy and Offensive Language allegations. In the absence of video, and its accompanying audio, the Board often has no means of resolving the conflicting testimony of officers and complainants about what was said during an encounter.

Figure 46: Impact of Video on Allegation Closures on the Merits by FADO

FADO Type	Board Disposition	2019						2020						2021					
		No Video		Video (not BWC)		BWC		No Video		Video (not BWC)		BWC		No Video		Video (not BWC)		BWC	
Force	Not on merit	205	51%	193	44%	157	27%	56	55%	68	47%	187	27%	31	82%	137	71%	392	46%
	Substantiated	8	2%	36	8%	53	9%	1	1%	15	10%	40	6%			14	7%	113	13%
	Within NYPD Guidelines	139	35%	142	33%	280	48%	26	26%	49	34%	351	51%	3	8%	34	18%	247	29%
	Unfounded	49	12%	63	15%	97	17%	18	18%	12	8%	111	16%	4	11%	7	4%	96	11%
Abuse of Authority	Not on merit	995	54%	585	47%	337	22%	414	65%	334	54%	583	28%	146	72%	215	59%	319	27%
	Substantiated	128	7%	185	15%	260	17%	58	9%	100	16%	405	20%	15	7%	43	12%	311	26%
	Within NYPD Guidelines	659	36%	412	33%	745	50%	152	24%	148	24%	846	41%	37	18%	91	25%	428	36%
	Unfounded	69	4%	50	4%	161	11%	15	2%	37	6%	238	11%	6	3%	15	4%	122	10%
Discourtesy	Not on merit	210	81%	158	69%	148	38%	81	88%	83	69%	102	32%	29	94%	80	87%	121	33%
	Substantiated	14	5%	36	16%	124	32%	5	5%	22	18%	82	26%	1	3%	4	4%	118	32%
	Within NYPD Guidelines	10	4%	13	6%	59	15%	1	1%	5	4%	66	21%			5	5%	70	19%
	Unfounded	24	9%	23	10%	57	15%	5	5%	10	8%	64	20%	1	3%	3	3%	60	16%
Offensive Language	Not on merit	60	88%	40	75%	29	42%	31	97%	26	90%	36	55%	10	83%	16	64%	25	31%
	Substantiated	3	4%	6	11%	16	23%	1	3%	1	3%	9	14%	2	17%	9	36%	36	45%
	Within NYPD Guidelines					2	3%					1	2%					1	1%
	Unfounded	5	7%	7	13%	22	32%			2	7%	20	30%					18	23%

SECTION 6: OUTREACH AND INTERGOVERNMENTAL AFFAIRS

Over the past several years, the CCRB has sought to increase the scope and scale of its Outreach Program, to raise awareness of the Agency's mission and foster the public's trust in its investigative process. The CCRB Outreach and Intergovernmental Affairs (IGA) Unit has a director, a deputy director, and a coordinator for each borough to act as that borough's main liaison for the Agency.

The Outreach and IGA Unit's presentations provide an overview of the CCRB complaint process, explain the basic legal contours of police encounters, and stress the importance of de-escalation when interacting with the police.

In typical years, the Outreach and IGA Unit visits schools, public libraries, tenant associations, advocacy organizations, cultural groups, religious organizations, community boards, and precinct community councils, among other groups, in all five boroughs.

Figure 47: Number of Outreach Events

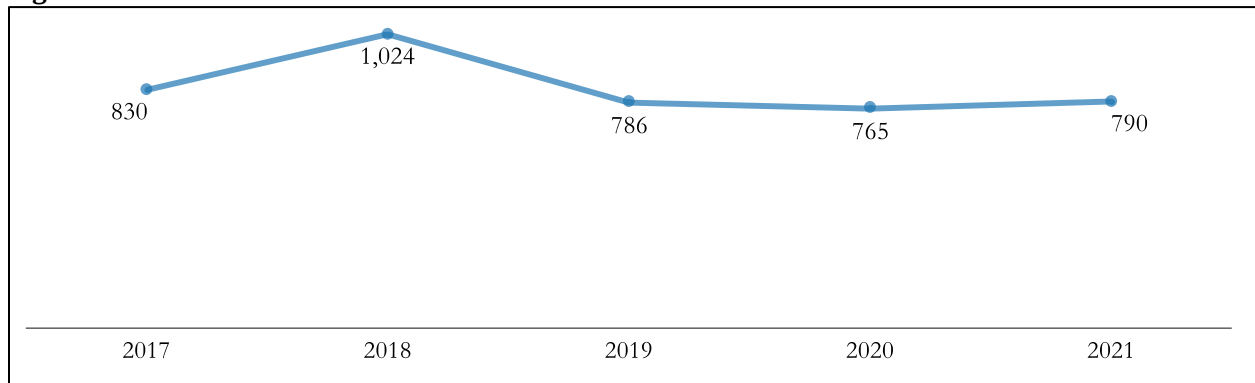


Figure 48: Outreach Events by Borough

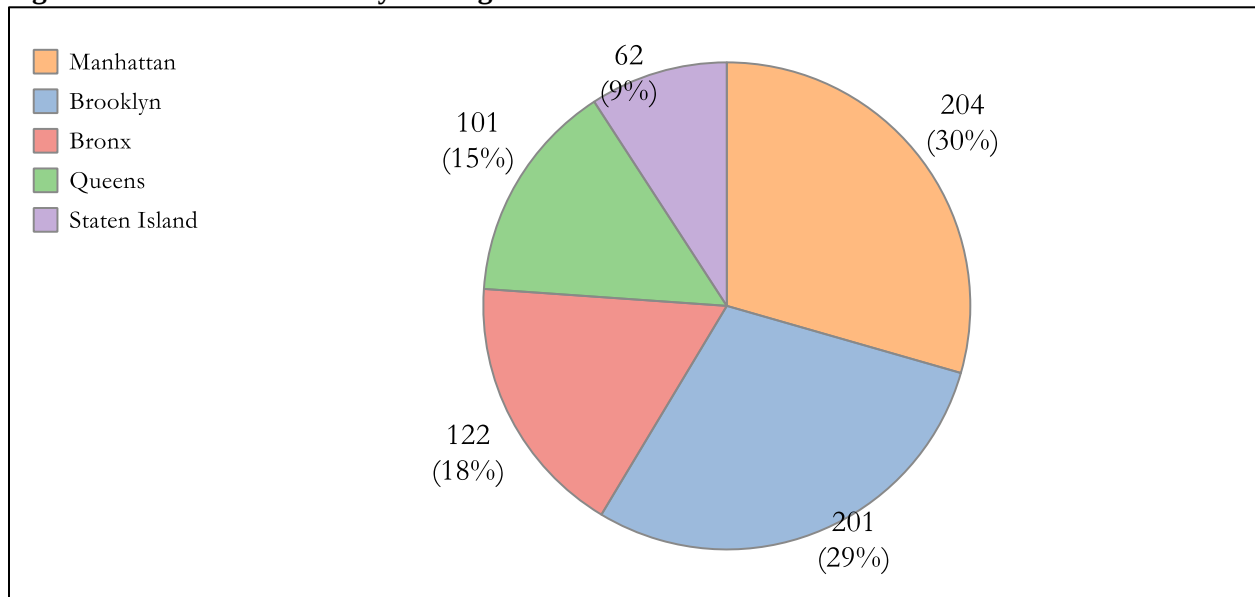
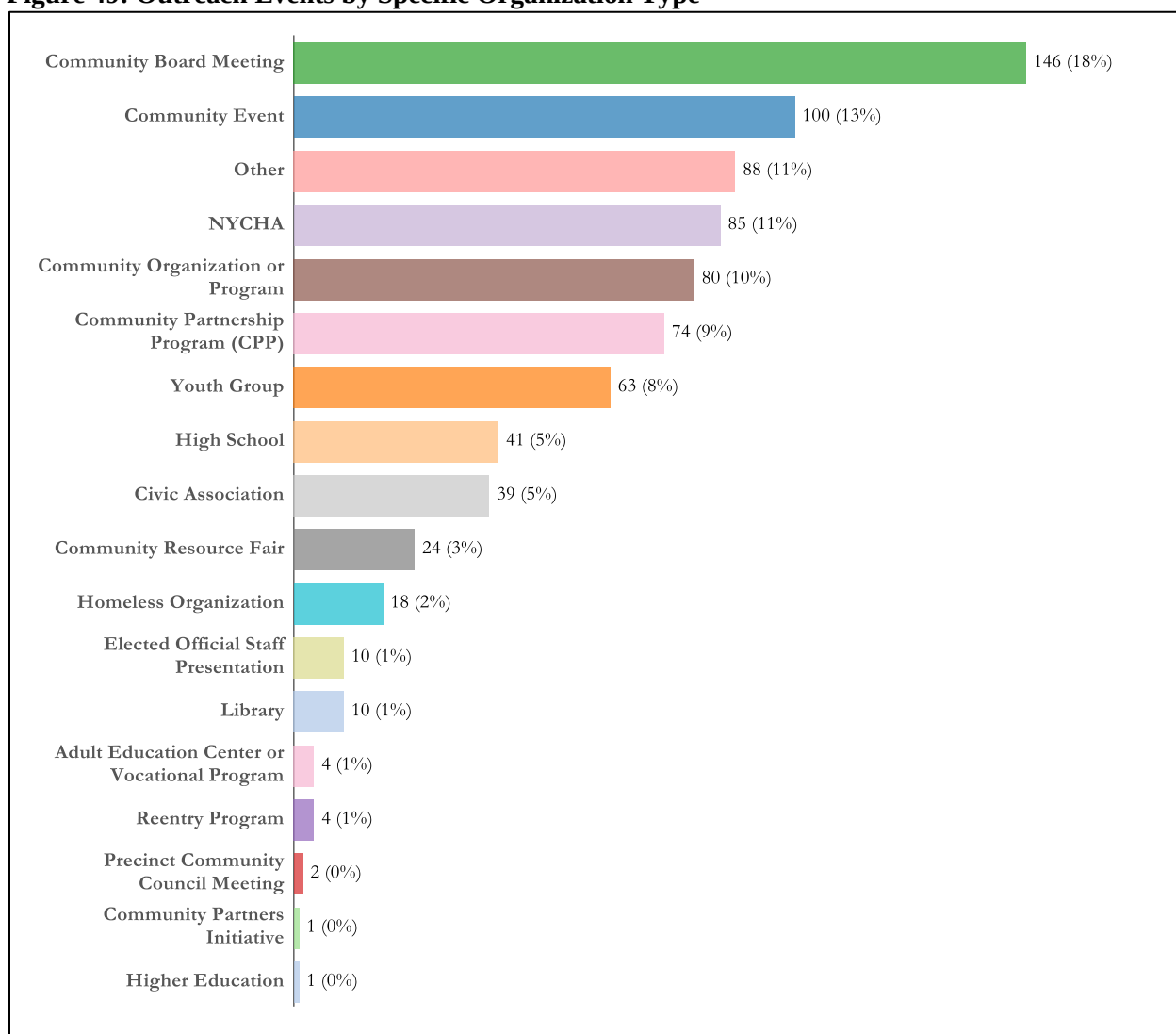


Figure 49: Outreach Events by Specific Organization Type



The Charter of the City of New York established the CCRB and empowered it to receive and investigate complaints from members of the public concerning misconduct by members of the NYPD. The CCRB is required to conduct its investigations “fairly and independently, and in a manner in which the public and the police department have confidence.” Under the City Charter, the CCRB now has jurisdiction to investigate the following categories of police misconduct: **Force**, **Abuse of Authority**, **Discourtesy**, and **Offensive Language**, and **Untruthful Statement** collectively known as **FADO&U**. The CCRB also notes **other possible misconduct** when it uncovers conduct by officers that is outside its jurisdiction but warrants the attention of the Department. Examples of other possible misconduct include failures by officers to enter necessary information in their activity logs (memo books) and failures to complete required documentation of an incident. The CCRB also has the authority to investigate and make recommendations about the truthfulness of material statements made by a subject officer during a CCRB investigation of a FADO allegation.

The **Board** consists of 15 members, five appointed by City Council, five appointed by the Mayor, three designated by the Police Commissioner, and one appointed by the Public Advocate. The Chair of the Board is dually appointed by the Mayor and City Council Speaker. Under the City Charter, the Board must reflect the diversity of the city’s residents and all members must live in New York City. No member of the Board may have a law enforcement background, except those designated by the Police Commissioner, who must have had a law enforcement vocation. No Board member may be a public employee or serve in public office. Board members serve three-year terms, which can be, and often are, renewed.

The **Executive Director** is appointed by the Board and is the Chief Executive Officer, who is responsible for managing the day-to-day operations of the Agency and overseeing its more than 200 employees. The Agency consists of a 150-member **Investigations Division** responsible for investigating allegations of police misconduct and for making investigative findings. The most serious police misconduct cases, for which the Board has substantiated misconduct and recommended discipline in the form of Charges and Specifications, are prosecuted by the **Administrative Prosecution Unit (APU)**. The APU began operating in April 2013, after the CCRB and the NYPD signed a **Memorandum of Understanding** establishing the unit. APU attorneys are responsible for prosecuting, trying, and resolving cases before a Deputy Commissioner of Trials or Assistant Deputy Commissioner of Trials at One Police Plaza.

The Agency also includes a **Mediation** program that works to resolve less serious allegations between a police officer and a civilian. A complainant may **mediate** their case with the subject officer, in lieu of an investigation, with the CCRB providing a neutral, third-party mediator.

The **Outreach and Intergovernmental Affairs Unit** acts as a liaison with various entities and is responsible for intergovernmental relations, outreach presentations, and community events throughout the five boroughs.

Members of the public who file complaints of alleged misconduct by NYPD officers are referred to as **complainants**. Other civilians involved in the incident are categorized as **victims** or **witnesses**. Officers who are alleged to have committed acts of misconduct are categorized as **subject officers**, while officers who witnessed or were present for the alleged misconduct are categorized as **witness officers**. Investigators in the **Intake Unit** receive complaints from members of the public, which are filed in-person, by telephone, voicemail, an online complaint form, or are referred to the Agency by another agency. When a **complaint** is filed, the CCRB assigns it a unique complaint identification number. The CCRB also refers to complaints as **cases**. A single complaint or case may contain multiple FADO&U **allegations**.

Allegations regarding improper entries, searches, or failures to show a warrant are considered allegations falling within the CCRB’s Abuse of Authority jurisdiction. The vast majority of complaints regarding improper entries, searches, or warrant executions involve only a single incident of entry or search, but

some complaints involve more than one entry or search (occurring on the same day or on different days). Each allegation is reviewed separately during an investigation.

During an **investigation**, the CCRB's civilian investigators gather documentary and video evidence and conduct interviews with complainants, victims, civilian witnesses, subject officers, and witness officers in order to determine whether the allegations occurred and whether they constitute misconduct. At the conclusion of the investigation, a **closing report** is prepared, summarizing the relevant evidence, and providing a factual and legal analysis of the allegations. The closing report and investigative file are provided to the Board before it reaches a disposition. A panel of three Board members (**Board Panel**) reviews the material, makes findings for each allegation in the case, and if allegations are substantiated, provides recommendations as to the discipline that should be imposed on the subject officers.

The **Disposition** is the Board's finding of the outcome of a case. The Board is required to use a **preponderance of the evidence** standard of proof in evaluating cases. Findings **on the merits** result when CCRB is able to conduct a full investigation and obtain sufficient credible evidence for the Board to reach a factual and legal determination regarding the officer's conduct. In these cases, the Board may arrive at one of the following findings on the merits for each allegation in the case: **Substantiated**, **Within NYPD Guidelines**, or **Unfounded**. Substantiated cases are those where it was proven by a preponderance of evidence that the alleged acts occurred and the acts constituted misconduct. Within NYPD Guidelines cases are those where it was shown by a preponderance of the evidence that the alleged acts occurred, but the acts did not constitute misconduct. Unfounded cases are those where there was a preponderance of the evidence that the alleged acts did not occur. **Unable to Determine** cases are those where the CCRB was able to conduct a full investigation, but there was insufficient evidence to establish by a preponderance of the evidence whether or not an act of misconduct occurred. In some cases, the CCRB is unable to conduct a full investigation or mediation and must close the case as **Unable to Investigate**.³³

³³ Fully-investigated cases comprise complaints disposed of as Substantiated, Unable to Determine, Within NYPD Guidelines, Unfounded, Officers Unidentified, or Miscellaneous. Miscellaneous cases are those where an officer retires or leaves the Department before the Board receives the case for decision. Unable to Investigate cases are disposed of in one of the following ways: complainant/victim uncooperative, complainant/victim unavailable, and victim unidentified.

CHAPTER 18-A

CIVILIAN COMPLAINT REVIEW BOARD

§440 Public complaints against members of the police department.

(a) It is in the interest of the people of the city of New York and the New York city police department that the investigation of complaints concerning misconduct by officers of the department towards members of the public be complete, thorough and impartial. These inquiries must be conducted fairly and independently, and in a manner in which the public and the police department have confidence. An independent civilian complaint review board is hereby established as a body comprised solely of members of the public with the authority to investigate allegations of police misconduct as provided in this section.

(b) Civilian complaint review board.

1. The civilian complaint review board shall consist of 15 members of the public. Members shall be residents of the city of New York and shall reflect the diversity of the city's population. The members of the board shall be appointed as follows: (i) five members, one from each of the five boroughs, shall be appointed by the city council; (ii) one member shall be appointed by the public advocate; (iii) three members with experience as law enforcement professionals shall be designated by the police commissioner and appointed by the mayor; (iv) five members shall be appointed by the mayor; and (v) one member shall be appointed jointly by the mayor and the speaker of the council to serve as chair of the board.

2. No member of the board shall hold any other public office or employment. No members, except those designated by the police commissioner, shall have experience as law enforcement professionals, or be former employees of the New York city police department. For the purposes of this section, experience as a law enforcement professional shall include experience as a police officer, criminal investigator, special agent, or a managerial or supervisory employee who exercised substantial policy discretion on law enforcement matters, in a federal, state, or local law enforcement agency, other than experience as an attorney in a prosecutorial agency.

3. The members shall be appointed for terms of three years. The public advocate shall make the public advocate's first appointment to the board on or before May 6, 2020. The board member so appointed shall assume office on July 6, 2020. The mayor and the speaker of the council shall make their initial joint appointment to the board on or before May 6, 2020. The member so appointed shall serve as the board's chair and shall assume office on July 6, 2020.

4. Members of the board shall serve until their successors have been appointed and qualified. In the event of a vacancy on the board during the term of office of a member by reason of removal, death, resignation, or otherwise, a successor shall be chosen in the same manner as the original appointment within 60 days from the date such vacancy occurred. A member appointed to fill a vacancy shall serve for the balance of the unexpired term. During any period in which the office of the chair is vacant, the mayor shall select a member of the board to serve as interim chair until such vacancy has been filled.

(c) Powers and duties of the board.

1. The board shall have the power to receive, investigate, hear, make findings and recommend action upon complaints by members of the public against members of the police department that allege misconduct involving excessive use of force, abuse of authority, discourtesy, or use of offensive language, including, but not limited to, slurs relating to race, ethnicity, religion, gender, sexual orientation and disability. The board shall also have the power to investigate, hear, make findings and recommend action regarding the truthfulness of any material official statement made by a member of the police department who is the subject of a complaint received by the board, if such statement was made during the course of and in relation to the board's resolution of such complaint. The findings and

recommendations of the board, and the basis therefor, shall be submitted to the police commissioner. No finding or recommendation shall be based solely upon an unsworn complaint or statement, nor shall prior Unable to Determine, unfounded or withdrawn complaints be the basis for any such finding or recommendation.

2. The board shall promulgate rules of procedure in accordance with the city administrative procedure act, including rules that prescribe the manner in which investigations are to be conducted and recommendations made and the manner by which a member of the public is to be informed of the status of his or her complaint. Such rules may provide for the establishment of panels, which shall consist of not less than three members of the board, which shall be empowered to supervise the investigation of matters within the board's jurisdiction pursuant to this section, and to hear, make findings and recommend action on such matters. No such panel shall consist exclusively of members appointed by the council, or designated by the police commissioner, or appointed by the mayor.

3. The board, by majority vote of its members, may compel the attendance of witnesses and require the production of such records and other materials as are necessary for the investigation of matters within its jurisdiction pursuant to this section. The board may request the corporation counsel to institute proceedings in a court of appropriate jurisdiction to enforce the subpoena power exercised pursuant to this section, and the board itself may, subject to chapter 17 of the charter, institute such proceedings. The board may, subject to any conditions it deems appropriate, delegate to and revoke from its executive director such subpoena authority and authority to institute proceedings.

4. The board shall establish a mediation program pursuant to which a complainant may voluntarily choose to resolve a complaint by means of informal conciliation.

5. The board is authorized, within appropriations available therefor, to appoint such employees as are necessary to exercise its powers and fulfill its duties. The board shall employ civilian investigators to investigate all matters within its jurisdiction.

6. The board shall issue to the mayor and the city council a semi-annual report which shall describe its activities and summarize its actions.

7. The board shall have the responsibility of informing the public about the board and its duties and shall develop and administer an on-going program for the education of the public regarding the provisions of this chapter.

(d) Cooperation of police department.

1. It shall be the duty of the police department to provide such assistance as the board may reasonably request, to cooperate fully with investigations by the board, and to provide to the board upon request records and other materials which are necessary for investigations undertaken pursuant to this section, except such records or materials that cannot be disclosed by law.

2. The police commissioner shall ensure that officers and employees of the police department appear before and respond to inquiries of the board and its civilian investigators in connection with investigations undertaken pursuant to this section, provided that such inquiries are conducted in accordance with department procedures for interrogation of members.

3. The police commissioner shall report to the board in writing on any action taken, including the level of discipline and any penalty imposed, in all cases in which the board submitted a finding or recommendation to the police commissioner with respect to a matter within its jurisdiction pursuant to this section. In any case substantiated by the board in which the police commissioner intends to impose or has imposed a different penalty or level of discipline than that recommended by the board or by the deputy commissioner responsible for making disciplinary recommendations, the police commissioner shall provide such written report, with notice to the subject officer, no later than 45 days after the imposition of such discipline or in such shorter time frame as may be required pursuant to an agreement

between the police commissioner and the board. Such report shall include a detailed explanation of the reasons for deviating from the board's recommendation or the recommendation of the deputy commissioner responsible for making disciplinary recommendations and, in cases in which the police commissioner intends to impose or has imposed a penalty or level of discipline that is lower than that recommended by the board or such deputy commissioner, shall also include an explanation of how the final disciplinary outcome was determined, including each factor the police commissioner considered in making his or her decision.

(e) The provisions of this section shall not be construed to limit or impair the authority of the police commissioner to discipline members of the department. Nor shall the provisions of this section be construed to limit the rights of members of the department with respect to disciplinary action, including but not limited to the right to notice and a hearing, which may be established by any provision of law or otherwise.

(f) The provisions of this section shall not be construed to prevent or hinder the investigation or prosecution of members of the department for violations of law by any court of competent jurisdiction, a grand jury, district attorney, or other authorized officer, agency or body.

(g) 1. Beginning in fiscal year 2021 and for each fiscal year thereafter, the appropriations available to pay for the personal services expenses of the civilian complaint review board during each fiscal year shall not be less than an amount sufficient to fund personal services costs for the number of full-time personnel plus part-time personnel, calculated based on full-time equivalency rates, equal to 0.65 percent of the number of uniform budgeted headcount of the police department for that fiscal year, as determined consistent with published budgeted headcount documents of the office of management and budget. The calculation to determine the minimum appropriations for the personal services expenses of the civilian complaint review board pursuant to this paragraph shall be set forth in the preliminary expense budget, the executive expense budget, and the adopted budget.

2. Notwithstanding paragraph 1 and in addition to any action that may be undertaken pursuant to section 106, the appropriations available to pay for the personal services expenses of the civilian complaint review board may be less than the minimum appropriations required by paragraph 1 provided that, prior to adoption of the budget pursuant to section 254 or prior to the adoption of a budget modification pursuant to section 107, the mayor determines that such reduction is fiscally necessary and that such reduction is part of a plan to decrease overall appropriations or is due to unforeseen financial circumstances, and the mayor sets forth the basis for such determinations in writing to the council and the civilian complaint review board at the time of submission or adoption, as applicable, of any budget or budget modification containing such reduction.

(Am. L.L. 2019/215, 12/11/2019, eff. 12/11/2019 and 3/31/2020)

§ 441. Investigating past professional conduct by members of the police department.

a. Definitions. As used in this section, the following terms have the following meanings:

Act of bias. The term “act of bias” means an act stemming from a specific incident:

- (i) that is motivated by or based on animus against any person on the basis of race, ethnicity, religion, gender, sexual orientation or disability, and
- (ii) that the board is empowered to investigate pursuant to paragraph 1 of subdivision c of section 440.

Board. The term “board” means the civilian complaint review board.

Covered entity. The term “covered entity” means the police department, the board, the commission on human rights, the department of investigation, a court of competent jurisdiction or any other officer or body designated by the board.

- b. 1. The board: (i) shall conduct an investigation of past conduct in the course of performance of official duties by a current or former member of the police department whom a covered entity has found, in a final determination reached after such member was afforded an opportunity to respond to the relevant allegations, to have engaged in a severe act of bias, regardless of whether such member was on or off duty when engaging in such act, if the date that such investigation commences would be less than five years after such final determination was made; and (ii) may conduct an investigation of past conduct in the course of performance of official duties by a current or former member of the police department whom a covered entity has found, in a final determination reached after such member was afforded an opportunity to respond to the relevant allegations, to have engaged in an act of bias other than a severe act of bias, regardless of whether such member was on or off duty when engaging in such act, if the date that such investigation commences would be less than five years after such final determination was made.
2. For the purposes of initiating such investigations, the board shall define what constitutes a severe act of bias and, in consultation with each covered entity, what constitutes a covered entity’s final determination that such a member engaged in an act of bias or severe act of bias, provided that off-duty conduct may be the basis for initiating such investigation only if (i) such conduct could have resulted in removal or discipline by the police department, (ii) the board reasonably believes such conduct has had or could have had a disruptive effect on the mission of the police department, and (iii) the police department’s interest in preventing actual or potential disruption outweighs the member’s speech interest.
3. Within 10 days after making or changing a definition made pursuant to paragraph 2 of this subdivision, the board shall communicate such definition or change to each covered entity and shall make such definition or change publicly available online.
4. If a covered entity that is an agency makes a final determination that such a member engaged in an act of bias or a severe act of bias, such covered entity shall promptly provide notice to the board in a time, form and manner designated by the board in consultation with such covered entity.
5. Within 120 days after the effective date of sections one through four of the local law that added this section, each covered entity that is an agency shall, to the extent practicable, provide the board with a written list of such members whom such covered entity has finally determined to have engaged in an act of bias or severe act of bias before such effective date and on or after January 1, 2016; provided that such list shall be provided in a form and manner, and shall include such additional information, as the board may require in consultation with such covered entity.
6. At least once every 4 months after the effective date of sections one through four of the local law that added this section, the board shall request from each covered entity that is not an agency, except a court with jurisdiction within the state of New York, information about final determinations made by such entity that such a member engaged in an act of bias or severe act of bias, including final determinations made on or after January 1, 2016.
7. The board shall consult with the law department to obtain information about final determinations by a covered entity that is a court with jurisdiction within the state of New York that such a member has engaged in an act of bias or severe act of bias, including final determinations made on or after January 1, 2016.

- c. The board shall determine the scope of past conduct in the course of performance of official duties by such member to investigate based on the member's professional rank and assigned roles and the nature of the member's act of bias. The board shall investigate all or a representative sampling of such member's past conduct within such scope beginning from the date of hire by the police department until and including, for a former member of the police department, the last day of employment by the police department, or, for a current member of the police department, the date of initiation of an investigation pursuant to this section.
- d. 1. Within 10 days after the board initiates such investigation, the board shall provide written notice to the member being investigated and to the relevant covered entity.
2. Within 10 days after the completion of such investigation, the board shall provide a written statement of final determination to the member being investigated. Such statement shall include (i) the investigation's details, when it was initiated and concluded, the identity of its subject and a summary of the materials reviewed by the board during the investigation; (ii) the board's investigative findings, including the identification of any threat to the safety of an individual or the public and whether the board found evidence of any additional past acts of bias committed in the course of performance of official duties; (iii) if applicable, any recommendations of the board for remedial action, including training, discipline, where consistent with section 75 of the civil service law, or both; and (iv) if applicable, a statement that the board has determined to terminate the investigation and an explanation why.
3. The board shall provide an opportunity for the member being investigated to answer in writing, within a time period established by rule, any findings or recommendations made by the board. If such member timely submits such an answer, the board shall consider it and determine whether to revise any such findings or recommendations in response.
4. Within 10 days after finalizing the written statement of final determination pursuant to paragraphs 2 and 3 of this subdivision, the board shall submit such written statement to the police commissioner, any other parties to whom notice was sent pursuant to paragraph 1 of this subdivision and any other appropriate agency or official as determined by the board. Within 120 days after receiving such written statement, the police commissioner shall report to the board in writing on any action taken or planned to be taken in response, including the level of discipline and any penalty imposed or to be imposed upon such member, as well as any other remedial action. If such action taken or planned to be taken differs from that recommended by the board, the police commissioner shall provide in such written report a detailed explanation for deviating from the board's recommendations and an explanation of how the final disciplinary or remedial decision was determined, including each factor the police commissioner considered in making such decision. If the police commissioner takes action in response to such written statement of final determination after such 120-day period, the police commissioner shall provide an updated version of such written report to the board within 30 days after taking such action.
- e. 1. The board may, subject to any conditions it deems appropriate, delegate to and revoke from its chair or executive director any responsibility or authority assigned by this section to the board.
2. The board may, subject to any conditions it deems appropriate, designate a third party to assist with any investigation conducted under this section. Any such third party shall keep confidential and is prohibited from disclosing except to the board any information it obtains in the course of such investigation, except as otherwise required by law.
- f. The board shall, in accordance with subdivisions b, c and d of this section, promulgate rules that further prescribe the manner in which the board is to conduct investigations, present findings, make recommendations, provide notice and provide an opportunity for the member being investigated to be heard.

g. This section shall not be construed to limit or impair the police commissioner's authority to discipline members of the police department at any time. Nor shall this section be construed to limit the rights of members of the department with respect to disciplinary action, including but not limited to the right to notice and a hearing, which may be established by any provision of law or otherwise.

h. This section shall not be construed to prevent or hinder any investigation or prosecution undertaken by any covered entity.

(L.L. 2021/047, 4/25/2021, eff. 1/20/2022)

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BOARD MEMBERS

INTERIM CHAIR OF THE BOARD: MAYORAL APPOINTEE

Arva Rice

Arva Rice has more than 15 years' experience in the non-profit arena, ranging from working with New York City entrepreneurs in a micro lending program to working with young people as a counselor, mentor and tutor. She has extensive experience in collaboration building, strategic planning, fundraising and marketing. Arva is President & CEO of the New York Urban League (NYUL) an organization that has a rich history and long legacy of service to New Yorkers. Today, the mission of the NYUL is to enable African Americans and other underserved communities to secure a first-class education, economic self-reliance, and equal respect of their civil rights through programs, services and advocacy.

Prior to joining the League, she served as the Executive Director of Project Enterprise, an organization that provides business loans, technical assistance and peer support to New York City entrepreneurs who lack adequate access to business financing.

Arva is a member of the Women's Forum and Greater New York Chapter of The Links Incorporated. She is on the Board of Trustees of First Corinthians Baptist Church. In the past she has served on the Board of Directors of the Central Brooklyn Partnership (CBP) a non-profit dedicated to financial literacy and education in Bedford-Stuyvesant. Arva was appointed to the board by Mayor Bill de Blasio and appointed as Interim Chair by Mayor Adams

B.A. Northwestern University

MAYORAL APPOINTEES

Erica Bond, Esq.

Erica Bond has experience in the government, non-profit, public policy, and legal sectors. Most recently, Ms. Bond served as Special Advisor for Criminal Justice to the First Deputy Mayor of New York City. In this role, she advised and supported the First Deputy Mayor in management of the City's criminal justice agencies. Prior to joining city government, Ms. Bond was a Director of Criminal Justice at the Laura and John Arnold Foundation, where she worked to develop new research, policy reforms, and evidenced-based innovations with the goal of transforming criminal justice systems nationwide. In this role, she partnered with criminal justice practitioners, researchers, and policymakers on initiatives to improve community safety, increase trust and confidence in the criminal justice system, and ensure fairness in the criminal justice process. After graduating from law school, Ms. Bond began a legal career as a Litigation Associate at Kaye Scholer (now Arnold & Porter Kaye Scholer LLP), an international law firm where she represented clients on a variety of matters, including government investigations, regulatory compliance issues, and commercial disputes. Ms. Bond was appointed to the Board by Mayor Bill de Blasio.

J.D. Fordham University School of Law; B.A., Wesleyan University

Corinne A. Irish, Esq.

Corrine Irish is an attorney with the international law firm Squire Patton Boggs, where she litigates and counsels clients on a variety of complex commercial matters, ranging from contract disputes to enforcing intellectual property rights to advising clients on regulatory compliance. Ms. Irish is also a founding member of the firm's Public Service Initiative, where she has litigated death penalty, criminal, and civil rights cases involving a miscarriage of justice or a denial of fundamental rights on behalf of indigent clients. She has also served as counsel for amici clients before the U.S. Supreme Court in important cases of criminal constitutional law. Ms. Irish previously served as a law clerk, first to the Honorable William G. Young of the U.S. Court for the District of Massachusetts and then to the Honorable Barrington D. Parker of the U.S. Court of Appeals for the Second Circuit. Ms. Irish is a lecturer-in-law at Columbia Law School, where she has taught since 2012. She was also an adjunct professor at Brooklyn Law School in 2008 and 2009. Ms. Irish was recognized for six consecutive years as a Rising Star in New York Super

Lawyers and recently has been named to The National Black Lawyers – Top 100. Ms. Irish was appointed to the Board by Mayor Bill de Blasio.

J.D. Harvard Law School; B.A., University of Pennsylvania

John Siegal, Esq.

John Siegal is a partner in BakerHostetler, a national business law firm, where he handles litigation, arbitrations, and appeals for clients in the financial services, media, and real estate industries. Mr. Siegal's practice also includes constitutional law, civil rights, Article 78, and other cases both for and against government agencies and authorities. Mr. Siegal's public service experience includes working as an Assistant to Mayor David N. Dinkins and as a Capitol Hill staff aide to Senator (then Congressman) Charles E. Schumer. Throughout his legal career, Mr. Siegal has been active in New York civic, community, and political affairs. Mr. Siegal was appointed to the Board by Mayor Bill de Blasio.

J.D., New York University School of Law; B.A., Columbia College

Rev. Dr. Demetrius S. Carolina

Reverend Dr. Carolina currently serves as Senior Pastor at First Central Baptist Church and as Executive Director of the Central Family Life Center on Staten Island, where he develops corporate, public and private relationships, and oversees and administers strategies to ensure the operation and sustainability of the Life Center. Rev. Dr. Carolina was previously appointed as a commissioner of Human Rights in 2015 by Mayor Bill de Blasio and is the recipient of the 2017 New York City Council MLK Community Award, 2017 Stapleton UME Dreamers award, 2017 Black History City Council recognition, and various other awards and recognitions. He founded The Staten Island Black History Town Hall Meeting; served as lead advocate in bringing the nationally recognized Eagle Academy to Staten Island; organized the only Cure Violence Initiative on Staten Island, known on Staten Island as True 2 Life; and has grown the nonprofit community partnership connecting Staten Island with the other boroughs. Dr. Carolina was appointed to the Board by Mayor Bill de Blasio.

Ph.D. University of Phoenix; A.D., B.S., M.A. Temple University

CITY COUNCIL APPOINTEES

Joseph A. Puma

Joseph Puma's career in public and community service has been exemplified by the various positions he has held in civil rights law, community-based organizations, and local government. As a paralegal with the NAACP Legal Defense and Education Fund, Puma handled cases involving criminal justice, voting rights, employment discrimination, and school desegregation. Prior to joining the NAACP LDF, he worked for over six years at the NYC Office of Management and Budget, where he served in roles in intergovernmental affairs, policy, and budget.

From 2003 to 2004, Puma served as a community liaison for former NYC Council Member Margarita López. Since 2007, he has been involved with Good Old Lower East Side (GOLES), a community organization helping residents with issues of housing, land use, employment, post-Sandy recovery and long-term planning, and environmental and public health. A lifelong City public housing resident, Puma currently serves as GOLES's Board President and has participated in national public housing preservation efforts. Mr. Puma was appointed to the Board by the Manhattan City Council.

M.A., Union Theological Seminary; Certificate, Legal Studies, Hunter College, City University of New York; B.A., Yale University

Michael Rivadeneyra, Esq.

Michael Rivadeneyra is the Senior Director of Government Relations at the YMCA of Greater New York, where he develops the legislative and budgetary agenda for the organization. Prior to this role, Mr. Rivadeneyra served in various capacities as a legislative staffer to Council Members James Vacca, Annabel Palma, and Diana Reyna. While in law school, Mr. Rivadeneyra served as a legal intern at Main Street Legal Services, where he represented immigrant survivors of gender violence and advocated on behalf of undergraduate students from disadvantaged backgrounds. During law school, Mr. Rivadeneyra

also worked to advance immigrants' rights as an intern at the New York Legal Assistance Group. Mr. Rivadeneyra was appointed to the Board by the Bronx City Council.

J.D., CUNY School of Law, Queens College; B.A., State University of New York at Albany

Marbre Stahly-Butts, Esq.

Marbre Stahly-Butts is a former Soros Justice Fellow and now Policy Advocate at the Center for Popular Democracy. Her Soros Justice work focused on developing police reforms from the bottom up by organizing and working with families affected by aggressive policing practices in New York City. Ms. Stahly-Butts also works extensively on police and criminal justice reform with partners across the country. While in law school, Ms. Stahly-Butts focused on the intersection of criminal justice and civil rights, and gained legal experience with the Bronx Defenders, the Equal Justice Initiative, and the Prison Policy Initiative. Before law school, Ms. Stahly-Butts worked in Zimbabwe, organizing communities impacted by violence and taught at Nelson Mandela's alma mater in South Africa. Ms. Stahly-Butts was appointed to the Board by the Brooklyn City.

J.D., Yale Law School; M.A., Oxford University; B.A., Columbia University

Herman Merritt

Herman Merritt is a lifelong New Yorker who has served the city throughout his career. Mr. Merritt worked for the Department of Education (DOE) for 36 years, first as a teacher, then an assistant principal and finally as an elementary school principal for 18 years. After leaving the DOE, Mr. Merritt joined the Council of School Supervisors and Administrators as their Political Director, where he is currently the Assistant Political Director.

Born and raised in Brooklyn, Mr. Merritt attended New York University on a Martin Luther King scholarship and has long considered himself an activist. He joined the DOE right after graduating, aspiring to reform the New York public education system. He is deeply proud of what he accomplished while working for the city and hopes to continue his activism by bringing a fair, impartial perspective to the board. He is excited to give his community a voice and help the CCRB gain awareness. Mr. Merritt was appointed to the board by the Brooklyn City Council.

Professional Diploma, City College of New York; M.A., New York University; B.A., New York University

PUBLIC ADVOCATE APPOINTEE

Esmerelda Simmons, Esq.

Esmeralda Simmons is an accomplished lawyer and public servant who has spent decades fighting for human and civil rights on the federal, state, and municipal levels. Ms. Simmons founded the Center for Law and Social Justice at Medgar Evers College, a community-based racial justice advocacy center that focuses on legal work and research on civil rights and domestic human rights violations. Recently retired, she advocated for equity in public education, voting, policing, and the child welfare system as the Center's executive director for 34 years. Through the Center, Simmons provided community organizations with legal counsel and research assistance.

Before founding and directing the Center for Law and Social Justice, Ms. Simmons served as First Deputy Commissioner at the New York State Division of Human Rights, where she developed and led the implementation of policy in support of New Yorkers' human and civil rights, and as an Assistant Attorney General for the State of New York. In addition, she has served on several major public boards in New York City government, including the NYC Board of Education and the NYC Districting Commission.

Ms. Simmons also volunteers her skills and currently serves on the board of directors of UPROSE, a climate justice organization; the Council of Elders for African Cultural Heritage; and Little Sun People, an African-centered early childhood education center. In the recent past, she has served on several boards of national organizations: the Applied Research Center (now "Race Forward"); Vallecitos Mountain Retreat Center; the Child Welfare Fund; and the Poverty and Race Research Action Council (PRRAC).

Ms. Simmons has served as counsel or co-counsel on numerous major federal Voting Rights Act cases and election law cases and has secured victories before the United States Supreme Court. She is a member of the Metropolitan Black Bar and American Bar associations, Ile Ase, Inc., and the New York Voting Rights Consortium. Ms. Simmons was appointed to the Board by the Public.

J.D., Brooklyn Law School; B.A., Hunter College, City University of New York

POLICE COMMISSIONER DESIGNEES

Salvatore F. Carcaterra

Salvatore F. Carcaterra began his law enforcement career in 1981 with the NYPD, where he served for 21 years. Starting as a Patrol Officer, he was promoted through the ranks to the position of Deputy Chief. As a Deputy Chief, he served as the Executive Officer to the Chief of Department, where, among many duties, he organized and implemented the NYPD's overall response to the threat of terrorism following the 9/11 attack on the World Trade Center. Prior to that, Carcaterra was a Deputy Inspector in command of the Fugitive Enforcement Division. As a Deputy Inspector, he also served in the Office of the Deputy Commissioner for Operations, managing COMPSTAT and commanding the Hate Crimes Task Force, increasing its arrest rate by over 50 percent. He served in the NYPD Detective Bureau as a Captain in the 70th Precinct and as Deputy Inspector in the 66th Precinct. After retiring from the NYPD, Carcaterra became the president of a security firm and now heads his own security company, providing personal and physical protection to individuals and corporations. Mr. Carcaterra is a Police Commissioner designee to the Board appointed by Mayor Bill de Blasio.

B.S., John Jay College of Criminal Justice, City University of New York; Graduate, Federal Bureau of Investigation National Academy; Graduate, Columbia University Police Management Institute

Frank Dwyer

Frank Dwyer, a Brooklyn native and current Queens resident, consults with and teaches at police departments and educational institutions throughout the United States. In 1983, he joined the NYPD and served in Queens, Brooklyn, and Manhattan in a variety of assignments, including as a Police Academy Law Instructor, the Commanding Officer of the 7th precinct on the lower eastside of Manhattan, and the Commanding Officer of the Office of the Deputy Commissioner for Operations. He worked in lower Manhattan on 9/11 and in the months that followed. Retiring in 2012 at the rank of Deputy Inspector, Dwyer is currently pursuing a doctorate in Criminal Justice. He has consulted for several police departments including Newark, New Jersey, and Wilmington. He has also taught at or consulted to the following educational institutions: John Jay College of Criminal Justice, Teachers College, Boston College, Morgan State University, and the University of San Diego. Mr. Dwyer is a Police Commissioner designee to the Board appointed by Mayor Bill de Blasio.

M.S.W., Hunter College, City University of New York; M.St., Cambridge University; M.P.A., Harvard University; M.A., Fordham University; B.A., Cathedral College

Willie Freeman

Willie Freeman began his 22-year law enforcement career in 1974 as a Patrol Officer in the New York City Police Department. He served in the 78th and 84th Precincts in Brooklyn. In 1979, he was assigned to the Police Academy, where he taught physical education, police science, and performed administrative duties as a Squad Commander. He was promoted to Sergeant and subsequently, assigned to the Organized Crime Control Bureau. Mr. Freeman served in the 70th Precinct as a Platoon Commander and Integrity Control Lieutenant. He worked in myriad divisions in Brooklyn and Manhattan including Narcotics and the Internal Affairs Bureau. Mr. Freeman retired in the rank of Lieutenant.

During his tenure with the NYPD, Mr. Freeman recruited and trained thousands of officers and taught police instructions, policy, and procedure. The Department recognized his service with Excellent Police Duty and Meritorious Police Duty medals. After retiring from the Department, Mr. Freeman spent 17 years as the Director of Security Services/Chief Investigator for the Newark Public School District, where he managed security personnel and served as the primary liaison between the police, the community and the schools. He has since worked as a public-school security consultant for Newark, Hempstead, and New

York State. He successfully assists large urban districts in designing and evaluating school safety plans, performing facility audits, and initiating community-based violence prevention programming. Mr. Freeman is a Police Commissioner designee to the Board appointed by Mayor Bill de Blasio.

M.S., Long Island University; B.S., Saint John's University; Graduate, Federal Bureau of Investigations National Academy, 182nd Session

EXECUTIVE AND SENIOR STAFF

EXECUTIVE STAFF

Executive Director: Jonathan Darche, Esq.

General Counsel: Matt Kadushin, Esq.

Chief Prosecutor: Andrea Robinson, Esq.

Deputy Executive Director of Administration: Jeanine Marie

Chief of Investigations: Mercer (“Monte”) Givhan, Esq.

Senior Advisor to the Executive Director & Director of Intergovernmental Affairs: Yojaira Alvarez

Senior Counsel to the Executive Director & Director of Policy and Advocacy: Harya Tarekegn, Esq.

SENIOR STAFF

Deputy Chief Prosecutor: Suzanne O’Hare, Esq.

Director of Case Management: Eshwarie Mahadeo

Senior Communications Advisor: Clio Calvo-Platero

Director of Racial Profiling and Bias Policing Unit: Darius Charney, Esq.

Director of Civilian Witness Assistant Unit: Baiana Turat, LCSW, CCM

Director of Analytics and Application Development: Lincoln MacVeagh

Director of Human Resources: Jennelle Brooks

Director of Information Technology: Carl Esposito

Director of NYPD Relations: Christopher DeNitto

Director of Operations and Budget: David B. Douek

Director of Recruitment: LaShawn Lindsey

Deputy Chief of Special Operations: Olas Carayannis

Director of Investigative Training: Jennifer Jarett

Director of Outreach: Jahi Rose